



77-341

LARIMER COUNTY
RECLAMATION PLAN
MARTIN MARIETTA CEMENT
WESTERN DIVISION
LYONS, COLORADO

Prepared By

Marvin L. Berg, P.E.

Quarry Superintendent

Martin Marietta Cement

RECEIVED

STATE OF COLORADO
Mined Land Reclamation Board
Department of Natural Resources
313 Sherman Street, Room 723
Denver, CO 80203

SEP 29 1977

Application for Mining and
Reclamation Permit, Pursuant
to C.R.S. 1973, 34-32-101 et seq.

MINED LAND RECLAMATION
T~~he~~ Colorado Department of Natural Resources

77-341
check no. 1068
\$1,596.00

1. Name of operations (Pit, mine, or site name)	Larimer County Quarry
2. Name of applicant/operator (Name to be used on permit)	Martin Marietta Cement Western Division
3. Address and phone number of local offices	P.O. Box 529, Lyons, CO 80540 823-6685 534-4206 (Denver line)
4. Address and phone number of general offices	P.O. Box 45586, Tulsa, OK 74145 (918) 663-0030
5. Name and phone number of person staff members should contact	G. L. Anderson 823-6685 P.O. Box 529 Lyons, CO 80540
6. Parent Corporation, if any (Include name & address)	Marietta Corporation 6801 Rockledge Drive, Bethesda, MD 20034
7. Owner(s) of record of affected land (surface area) (If more than 2, list in Exhibit P)	Martin Marietta Corporation
8. Owner(s) of substance to be mined (If more than 2, list in Exhibit P)	Martin Marietta Corporation
9. Source of legal right to enter (Indicate what type of proof is included in Exhibit O - lease, deed, notarized letter, etc.)	Tax receipts (1976)
10. Type of mine & substance to be mined (Specify underground, strip, open pit, etc. and substance(s) to be mined)	Open Pit Limestone
11. General location & elevation (Miles & direction from nearest town & approximate site elevation)	7 miles S.W. Berthoud, CO on Wagonwheel road 5375 elevation
12. County	Larimer
13. Acreage of affected lands (Total surface acreage to be included in permit)	196 acres
14. Application fee (See Rule 2 to determine amount)	1596
15. Present land use (i.e., agricultural, industrial, etc.)	Agricultural
16. Surrounding land uses	Agricultural
17. Proposed future land use (Goal of reclamation)	Agricultural
18. Other mining permits & operations in Colorado (See Rule 2 for guidance)	Limestone Quarry - Lyons, Boulder, Colo. Sandstone Quarry - Lyons, Boulder, Colo.
19. The lands herein do not affect any of the lands described in Section 1.56(9), (Specify affirmation)	Yes

MARTIN MARIETTA CEMENT

WESTERN DIVISION
5350 E. 46 ST. P. O. BOX 45588
TULSA, OKLAHOMA 74145
TELEPHONE (918) 683-0030

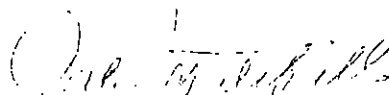
DALE MITCHELL
President

August 29, 1977

State of Colorado
Mined Land Reclamation Board
Department of Natural Resources
1313 Sherman Street
Room 723
Denver, CO. 80203

Subject: Application for Mining &
Reclamation Permit

I, Dale Mitchell, as President of Martin Marietta Cement Western Division, have the authority to make sure the operator pursues and does the Application for Mining and Reclamation Permit as presented.



Dale Mitchell
President

Reclamation Plan by:

Marvin L. Berg, P.E.

Member of Society of Mining Engineers of AIME

Member of National Society of Professional Engineers

Member of Professional Engineers of Colorado, Boulder Chapter

Information on Birds by:

Craig C. Williams

Vice President, Foothills Audubon Club

Federal and State Bird Bander

Submitted September 1, 1977

The purpose of this report is to comply with the Mined Land Reclamation Act of 1976 and to make application for a permit to allow Martin Marietta Cement, Western Division, Lyons, to engage in a mining operation upon the land described in the application for the life of the mine. This application shall be considered under statute 34-32-112 of House Bill No. 1065.

It is my intent to provide as much detailed information as possible pertinent to the mining operation and its effect on the ecology of the immediate area. The information and planning provided in this document has been prepared by Martin Marietta Cement and will constitute a working plan to be used for the remainder of the life of the plant.

The outline of this report follows the format in the Rules and Regulations of the Colorado Mined Land Reclamation Board, dated May 1977. I hope that the information is of sufficient detail and can be found and read easily.

Marvin L. Berg
Marvin L. Berg, P.E.
Quarry Superintendent
Martin Marietta Cement
Western Division
Lyons, Colorado

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EXHIBIT "A"

LEGAL DESCRIPTION

Martin Marietta, Western Division, Larimer County Quarry, is located approximately seven miles southwest of Berthoud, Colorado and approximately four miles south of Carter Lake. This property is located in the extreme southern part of Larimer County along Wagon Wheel Road. All of the property lies in Township 4N, Range 70W. The following is a description by section of the property. Bearings and distances are taken from a survey by Gremillion & Panetta, dated June 23, 1972.

Section 35 445.3 acres in the $N\frac{1}{2}$ of Section 35, T4N, R70W and the $N\frac{1}{2}$ of the $S\frac{1}{2}$ of Section 35, T4N, R70W described as follows: beginning at the NW corner of Section 35, T4N, R70W; thence along east-west section line S $89^{\circ} 31' 05''$ E, 2545.23' to the $N\frac{1}{4}$ corner Sec. 35, thence S $89^{\circ} 37' 25''$ E, 580 ft.; thence S $78^{\circ} 47' 15''$ E, 844.0'; thence S $88^{\circ} 37' 15''$ E, 188.0 ft.; thence N $80^{\circ} 22' 45''$ E, 545.0 ft.; thence N $83^{\circ} 02' 45''$ E, 345 ft.; thence N $86^{\circ} 06' 35''$ E, 71.36 ft. to a pt. 18 ft. S $0^{\circ} 10' 15''$ E of the NE corner of Section 35; thence S $0^{\circ} 10' 05''$ E, 2677.64 ft. to the E $\frac{1}{4}$ corner of Section 35; thence S $0^{\circ} 13' 30''$ E, 1318.25'; thence N $88^{\circ} 25' 45''$ W, 4788.44 ft.; thence N $4^{\circ} 38' 55''$, 3932.70 ft. to the pt. of origin.

Section 36 99.84 acres in the $W\frac{1}{2}$ of the $NW\frac{1}{4}$ of Section 36, T4N, R70W described as follows: beginning at a pt. 18 ft. S $0^{\circ} 10' 15''$ E of the NW corner of Section 36; thence N $86^{\circ} 06' 35''$ E, 157 ft.; thence N $89^{\circ} 05' 25''$ E, 463.36'; thence E 1016.35 ft.; thence S $0^{\circ} 34' 25''$ W, 2681.39 ft.; thence S $89^{\circ} 29' 05''$ W, 1601.66 ft.; thence N $0^{\circ} 10' 5''$ W 2677.64 ft. to the pt. or origin.

Affected property in Section 35 will be 151 acres primarily located in the center of said section and the east half of said section excluding the $S\frac{1}{2}$ of the $S\frac{1}{2}$ of said section.

Affected property in Section 36 lies in the $W\frac{1}{2}$ of the $NW\frac{1}{4}$ of said section. This property includes 45 acres.

A buffer zone 200 feet wide which includes 80 acres where no mining will take place begins at the S $1/16$ corner of the west section line of Section 35 and follows said section line to the NW corner of Section 35; thence east along the N property line to a point 1636.35 feet east of NE corner of Section 35; thence south 2681.39 ft.; thence west 1601.66 ft. to the E $\frac{1}{4}$ corner of Section 35; thence S 1318.25 ft. to the S $1/16$ corner of the east section line of Section 35; thence west 1650 ft. and ends there.

EXHIBIT "B"

EXHIBIT "C"

EXHIBIT "D"

MINING PLAN

The Martin Marietta property in Larimer County is zoned "O", Open District, in Section 35, T4N, R70W, and zoned FA-1, Farming District, in Section 36, T4N, R70W. Mines and quarries are allowed in the FA-1 zone, as stated in Section XI on Page 12 of the Zoning Resolution for Larimer County, Colorado. Mines and quarries are allowed in the "O" zone with restrictions, as presented in Section XXI on Page 22 of the Zoning Resolution for Larimer County, Colorado. A copy of the Zoning Resolution is found at the end of this section.

The mining plan for this quarry, located approximately seven miles southwest of Berthoud, Colorado, is very straightforward. The quarry is divided into four segments which are designated Pit A through D. Pits A and B are high grade limestone; whereas, Pits C and D are lower grade limestone.

Pit A is located on an outcrop with the ore body dipping to the south and southeast 16 degrees. The overburden overlying the ore body in this pit consists of (a) 0" to 8" topsoil capable of supporting tough dryland grasses; (b) 0' to approximately 10' of slopewash which is primarily clayey in nature; (c) 0' to 75' of shaley rock. The ore body is 14' to 16' in thickness. Below the ore body lies the codell sandstone formation.

Pit B is located to the west of Pit A and is also situated on an outcrop. The ore body dips to the east 17 degrees. In the south half of this pit, there is little or no overburden with the ore body exposed in many areas. In the north half, the overburden overlying the ore body consists of (a) 0" to 8" topsoil capable of supporting tough dryland grasses; (b) 0' to approximately 10' of slopewash which is clayey in nature; (c) 0' to 75' of shaley rock. The ore body is 14' to 16' in thickness with codell sandstone directly below.

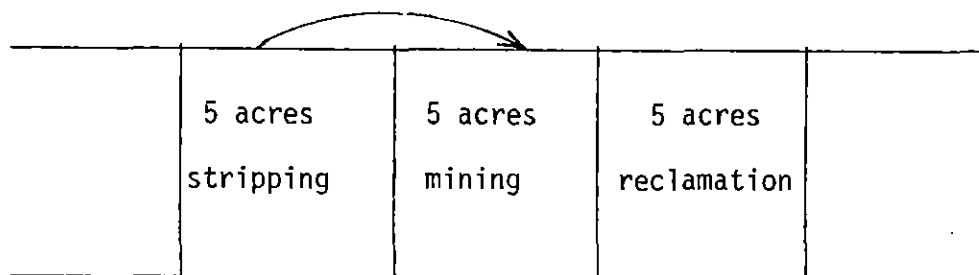
Pit C is located to the south of Pit A and is located on an outcrop. The ore body here is approximately 36' in thickness and dips to the southeast at approximately 16 degrees. The overburden overlying the ore body in this pit consists of (a) 0" to 8" topsoil capable of supporting tough dryland grasses; (b) 0' to 75' of shaley rock. Directly below the ore body lies more shaley rock.

Pit D is similar to Pit C. Pit D is located east of and is adjacent to Pit B. The ore body here is approximately 36' in thickness and dips to the east at 17 degrees. The overburden overlying the ore body in this pit consists of (a) 0" to 8" topsoil capable of supporting tough dryland grasses; (b) 0' to 75' of shaley rock. Directly below the ore body lies more shaley rock.

Overburden is removed with a front end loader and hauled away with trucks. If the situation presents itself, it is merely pushed with a dozer. Some of the waste rock is drilled and blasted before it is hauled to the waste area. The ore is drilled and blasted and hauled to the Martin Marietta Cement plant near Lyons, Colorado, approximately 10 miles away. Drill holes 3" in diameter are drilled with a rotary percussion drill. Loading is accomplished by a 2½ c.y. hydraulic shovel, and hauling is done by highway-type trucks.

Approximately 150,000 tons of ore will be mined through 1978. From then, 100,000 tons of ore will be mined for the duration of the mine. Refer to the timetable and estimated life of the mine at the end of this section.

Pit A is presently being mined. Mining commenced in the northeast corner of the pit located in Section 36 and is proceeding in a south-westerly direction following the outcrop. Only 15 acres are in a stage of development, mining, or reclamation at any one time. Five acres are opened up each year; these five acres extend across the pit perpendicular to the strike of the ore body. When the ore is removed from the five-acre tract, the next five acres are then stripped. The overburden and waste rock are placed into the area vacated by the removal of ore. These five acres are then reclaimed. Consequently, at any one time, five acres are under reclamation, five acres are under mining and five acres are under development. This is a requirement from our Permit to Operate.



From Pit A, mining and development will proceed to Pit B. Here the mining plan is the same. Mining will proceed from north to south. Mining will then proceed to Pit D which will be mined in the same manner as Pits A and B; however, Pit D will be mined from south to north.

After Pit D is mined out, we will go back to Pit C and mine out the western portion of that pit which is located in Section 35. If the ore reserves are needed, we will proceed to the eastern part of Pit C and mine from west to east.

To get the proper perspective, one must observe the mining plan, the timetable, and the pit maps at the same time. It is difficult to portray on a map the various phases because it is an ongoing operation.

The total acres to be mined is approximately 196 acres. Only 15 acres will be disturbed at any one time. Dewatering will be minimal which will be due only to rainfall. Water will be pumped onto the re-claimed area for restoration.

Work in Pits A through D all come under the heading of major disturbance; however, as work progresses, the major disturbance tones down to a moderate disturbance and then to a minor disturbance before reclamation is complete.

ESTIMATED "LIFE SPAN" VARIOUS AREAS

<u>Area</u>		<u>Projected Mining Dates</u>	<u>Projected Reclamation Completion</u>
Pit A	Ore	1974 - 1998	2003
	Waste	1973 - 1994	
Pit B	Ore	1998 - 2018	2023
	Waste	1995 - 2012	
Pit C	Ore	2040 - 2075	2080
	Waste	2039 - 2074	
Pit D	Ore	2018 - 2039	2045
	Waste	2013 - 2038	

Pit Areas

A	64 A
B	47 A
C	57 A
D	28 A

COMPREHENSIVE
ZONING RESOLUTION

for

LARIMER COUNTY, COLORADO

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A RESOLUTION CONTINUING, ESTABLISHING OR AMENDING LAND USE ZONING WITHIN ALL THE UNINCORPORATED AREAS IN LARIMER COUNTY, COLORADO; ADOPTING MAPS OF SAID AREA AND ZONING DISTRICTS THEREIN; REGULATING THE USE OF THE LAND AND THE USE, SETBACK, LOT AREA, LOT WIDTH, YARDS AND HEIGHT OF BUILDINGS; PROVIDING FOR THE ADJUSTMENT, ENFORCEMENT, AND AMENDMENT THEREOF; DEFINING CERTAIN TERMS USED HEREIN; PRESCRIBING PENALTIES FOR THE VIOLATION OF ITS PROVISIONS; AND REPEALING ALL RESOLUTIONS IN CONFLICT HERewith:

BE IT RESOLVED BY
THE BOARD OF COUNTY COMMISSIONERS
OF
THE COUNTY OF LARIMER, COLORADO:

Section 1

TITLE AND AUTHORITY

1.1 Title

A resolution continuing, establishing or amending land use zoning within certain unincorporated areas in Larimer County, Colorado; adopting maps of said areas and zoning districts therein; regulating the use of the land and the use, setback, lot area, lot width, yards and height of buildings; providing for the adjustment enforcement, and amendment thereof; defining certain terms used herein, prescribing penalties for the violation of its provisions; and repealing all resolutions in conflict herewith.

1.2 Short Title

For the purpose of brevity this resolution shall hereafter be referred to as the "Larimer County Zoning Resolution."

1.3 Purpose

These regulations shall be for the purpose of promoting the health, safety, morals, convenience, order, prosperity or welfare of the present and future inhabitants of the County of Larimer, Colorado, by: lessening congestion in the streets and roads, reducing the waste of excessive amounts of roads; securing safety from fire and other dangers; providing adequate light and air; classifying land use; and the distribution of land development and utilization protecting the tax base; securing economy in governmental expenditures; fostering the State's agricultural and other industries; and protecting both urban and non-urban development.

1.4 Authority

The Larimer County Zoning Resolution and Map is authorized by Article II, Chapter 106, of the Colorado Revised Statutes, 1953, as amended, and is hereby declared to be in accordance with all provisions of these statutes.

Section II

DISTRICTS

2.1 Establishment of Districts

In order to carry out the provisions of this resolution, there are hereby created and established or continued in Larimer County, Colorado the following classifications for zoning districts:

Estate Districts	E, E1, E2, and E3
Residential Districts.....	R and R1
Farming Districts	FA and FA1
Forestry District	FO and FO1
Multiple Family Districts	M and M1
Accommodations District	A
Tourist District.....	T
Business District	B
Commercial Districts.....	C
Industrial District.....	I
Open District	O

2.2 Boundaries

The boundaries and zoning classifications of districts hereby established are as shown on official zoning maps for areas within Larimer County as adopted or amended after public hearings by the Board of County Commissioners of Larimer County. Such maps and all notations, references, data and other information shown thereon are by reference hereby made a part of this resolution.

District boundary lines are section lines; lot lines; the center lines of highways, streets, alleys, railroad right of ways, or such lines extended; municipal corporate lines; natural boundary lines, such as streams; or other lines drawn to scale on the official zoning maps.

Where a lot is divided at the time of enactment of this resolution or by subsequent amendments, by a zoning district boundary line, the less restrictive zone requirements may be extended not more than 50 feet into the more restrictive zoning district, provided such extension is more than 10 feet from any property line.

Section III

APPLICATION OF REGULATIONS

3.1 General Application

Except as hereinafter otherwise provided:

1. No building shall be erected and no existing building shall be moved, altered, added to or enlarged, nor shall any land, building or premises be used, designated or intended to be used for any purpose or in any manner other than is included among the uses hereinafter listed as permitted in the district in which such building, land, or premises is located.
2. No building shall be erected, reconstructed or structurally altered to exceed in height the limit hereinafter designated for the districts in which such building is located.
3. No building shall be erected, nor shall any existing building be altered, enlarged or rebuilt, nor shall any open space surrounding any building be encroached upon or reduced in any manner, except in conformity to the yard, building site area and building location regulations hereinafter designated for the district in which such building or open space is located.
4. No yard or other open space provided about any building for the purposes of complying with provisions of this Resolution shall be considered as providing a yard or other open space for any other building, and no yard or other open space on one lot shall be considered as providing a yard or open space for a building on any other lot.

3.2 Existing Buildings

The regulations contained herein are not retroactive in their application to existing buildings.

3.3 Agricultural Buildings and Uses

The provisions of this Resolution shall not apply to farm and ranch dwellings and to farm and ranch buildings where such dwellings and buildings are located on a lot of more than five acres in size, where the lot width is more than 300 feet, and where such dwellings and buildings are constructed more than 100 feet from the center line of a public road right of way.

Section IV
E, ESTATE DISTRICT

4.1 Uses Permitted

1. One-family dwellings;
2. public and private schools for elementary and high school education;
3. public parks and playgrounds and other public recreation facilities;
4. churches and church schools;
5. public utility mains, lines and substations . . . where no public office and no repair or storage facilities are maintained;
6. accessory buildings and uses;
7. fences, hedges and walls . . . provided such uses are less than 3½ feet in height when located within 100 feet of the center line intersection of two streets or roads;
8. domestic animals . . . provided such animals are household pets and that kennels are not maintained;
9. signs for identification . . . provided such signs are less than two square feet in area, are unlighted and describe a permitted use. Such signs shall not exceed two per lot, except that directional identification signs may be grouped at a road junction;
10. guest houses . . . not exceeding one for each 2½ acres of lot;
11. riding horses . . . for use of occupants of the lot and their guests, but not exceeding one horse for each ½ acre of lot;
12. crop, grazing, orchard and garden uses; not including feed yards, poultry farms and similar high intensity farm uses;
13. private greenhouses;
14. water development for private or public use.

4.2 Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads . . . same as major highways.

4.3 Minimum Lot Area 2½ acres.

4.4 Minimum Lot Width 200 feet.

4.5 Minimum Side and Rear Yards (each yard) 50 feet.

4.6 Maximum Height of Buildings 40 feet.

Section V

E1, ESTATE DISTRICT

All requirements for the E1 District shall be the same for the E District, except as follows:

- 5.1 Minimum Lot Area 1 acre.
- 5.2 Minimum Lot Width 160 feet.
- 5.3 Minimum Side and Rear Yards (each yard) 25 feet.

Section VI

E2, ESTATE DISTRICT

All requirements for the E2 District shall be the same as for the E District, except as follows:

6.1 Uses Permitted

1. Riding horses . . . not allowed.

6.2 Minimum Setback (from center line)

1. Other public road right of ways and established private roads 50 feet.

6.3 Minimum Lot Area

1. Where no public water or public sewer facilities are utilized 15,000 sq. ft.
2. Where either public water or public sewer facilities are utilized 10,000 sq. ft.

6.4 Minimum Lot Width

1. Where no public water or public sewer facilities are utilized 120 feet
2. Where either public water or public sewer facilities are utilized 80 feet

6.5 Minimum Side Yards (each yard) 7 feet

6.6 Minimum Rear Yards 25 feet

Section VII

E3, ESTATE DISTRICT

7.1 Uses Permitted . . . all uses permitted in the E-Estate District, except as stated herein:

1. One family dwellings . . . dwellings shall not be rented for a period of less than one year or sub-rented for a period of less than six months, and each dwelling shall contain at least 1,200 square feet of floor area as measured along the outside walls;
2. Accessory buildings and uses . . . not to exceed one (1) guest house and one garage; the guest house shall not be rented for a period of less than one (1) year or sub-rented for a period of less than six (6) months; and the guest house shall contain at least 600 square feet of floor area as measured along the outside wall;
3. Riding horses . . . for daytime use only and cannot be stabled on the lots.

Section VIII
R, RESIDENTIAL DISTRICT

8.1 Uses Permitted

1. All uses permitted in the E, Estate District, subject to the use provisions specified for such district unless otherwise stated herein;
2. hospitals;
3. nursery schools and day-care centers for pre-school age children;
4. farm and garden buildings and uses including the raising of livestock, poultry and similar farm uses but provided commercial feed lots or kennels are not maintained;
5. home occupations.

8.2 Minimum Setback (from center line)

- | | |
|--|-----------|
| 1. Arterial highways | 100 feet; |
| 2. Major highways | 75 feet; |
| 3. Other public road right of ways | 50 feet. |

8.3 Minimum Lot Area

- | | |
|---|----------------|
| 1. where no public water or public sewer facilities
are utilized | 15,000 sq. ft. |
| 2. where either public water or public sewer facilities
are utilized | 10,000 sq. ft. |

8.4 Minimum Lot Width

75 feet.

8.5 Minimum Side Yards (each yard)

7 feet.

8.6 Minimum Rear Yard

25 feet.

8.7 Maximum Height of Buildings

40 feet.

Section IX

R1, RESIDENTIAL DISTRICT

All requirements for the R1 District shall be the same as for the R District except as follows:

Minimum Lot Area

where public sewer facilities are utilized 7,500 sq. ft.

Minimum Lot Width

where public sewer facilities are utilized..... 60 ft.

Section X

FA, FARMING DISTRICT

10.1 Uses Permitted

1. All uses permitted in the R, Residential District, unless otherwise stated herein;
2. two-family dwellings;
3. farm and garden buildings and uses, including the raising of crops, livestock, poultry, and similar farm uses;
4. golf courses, including country clubs;
5. grange halls;
6. commercial feed yards, commercial poultry farms, kennels, radio transmitting stations, and veterinary hospitals ... provided all such uses and storage areas are located at least 660 feet from dwellings on other lots and from schools and churches;
7. stands for the sale of agricultural products produced on the premises;
8. signs for identification ... provided each use has not more than one such sign and that such a sign does not exceed 15 sq. ft. in area.

10.2 Minimum Setback

1. Arterial highways ... 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways ... 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads ... same as major highways.

10.3 No Maximum Height of Buildings.

Section XI

FA1, FARMING DISTRICT

11.1 Uses Permitted

1. All uses permitted in the FA, Farming District subject to the use provisions specified for such district unless otherwise stated herein;
2. airports;
3. cemeteries;
4. commercial feed yards, commercial poultry farms, kennels, radio transmitting stations, and veterinary hospitals... not limited by a distance from dwellings, schools, and churches;
5. gravel pits;
6. mines and quarries;
7. Oil drilling facilities;
8. riding academies;

11.2 Minimum Setback

1. Arterial highways... 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways... 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads... same as major highways.

Section XII
FO, FORESTRY DISTRICT

12.1 Uses Permitted

1. All uses permitted in the F, Estate District, subject to the use provisions specified for such district unless otherwise stated herein;
2. cemeteries;
3. gravel pits;
4. mines and quarries;
5. oil drilling facilities;
6. riding academies;
7. fur farms and portable sawmills, provided that all such uses are located at least 660 feet from dwellings on other lots and from schools and churches;
8. resort cabins, lodges, country clubs, and guest houses;
9. signs for identification . . . provided each use has not more than one such sign and that such a sign does not exceed 15 sq. feet in area.

12.2..Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads . . . same as major highways.

Section XIII
FOI, FORESTRY DISTRICT

13.1 Uses Permitted

1. All uses permitted in the F, Estate District, subject to the use provisions specified for each district unless otherwise stated herein;
2. Gravel pits . . . located at least 660 feet from dwellings on other lots and from schools and churches;
3. Mines and quarries . . . located at least 660 feet from dwellings on other lots and from schools and churches;
4. Riding academies, provided stables are located at least 660 feet from dwellings on other property and from schools and churches;
5. Riding horses for use of private lot owners and their guests, provided stables are at least 300 feet from the lot lines of the stables owners, but not exceeding one horse for each ½ acre of lot;
6. Kennels, portable saw mills and radio transmitting stations, provided all such uses and storage areas are located at least 660 feet from dwellings on other lots and from schools and churches.
7. Resort cabins, lodges, country clubs, and guest houses;
8. Signs for identification . . . provided each use has not more than one such sign and that such a sign does not exceed 15 sq. feet in area.

13.2 Minimum Setback

1. Arterial highways . . . 200 feet from center line, or 50 feet from property line, whichever is greater.
2. Major highways . . . 175 feet from center line or 50 feet from property line, whichever is greater.
3. Other public road right-of-ways and established private roads—same as major highways.

13.3 Minimum Lot Area 10 acres

13.4 Minimum Lot Width 300 feet

13.5 Minimum Side and Rear Yards 100 feet

13.6 Maximum Height of Buildings 40 feet

Section XIV

M, MULTIPLE FAMILY DISTRICT

14.1 Uses Permitted

1. All uses permitted in the R, Residential District, subject to the use provisions specified for such district unless otherwise stated herein;
2. multiple family dwellings;
3. boarding and rooming houses;
4. college and university buildings and uses;
5. fraternity and sorority houses;
6. rest homes, convalescent homes and nursing homes;

14.2 Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads . . . same as major highways.

14.3 Minimum Lot Area

1. Where public sewer facilities are not utilized.. . . . 15,000 sq. ft.
2. Where public sewer facilities are utilized.. . . . 7,500 sq. ft.

14.4 Minimum Lot Width

1. Where public sewer facilities are not utilized..... 120 feet.
2. Where public sewer facilities are utilized..... 60 feet.

14.5 Minimum Side and Rear Yards (each yard)..... 7 feet.

14.6 Maximum Height of Buildings... .. 40 feet.

Section XV

M1, MULTIPLE FAMILY DISTRICT

All requirements for the M1 District shall be the same as for the M District for all uses permitted in such M District; and in addition, the following uses shall be permitted in the M1 District only:

1. Trailer courts and mobile home parks . . . subject to all applicable County regulations, which shall regulate construction, sanitation, setback and similar development features.
2. Signs for identification . . . provided each use has not more than two such signs and that each sign does not exceed 30 square feet in area.

Section XVI

A, ACCOMMODATIONS DISTRICT

16.1 Uses Permitted

1. All uses permitted in the E, Estate District; subject to the use provisions specified for such district unless otherwise stated herein;
2. boarding and rooming houses;
3. hotels and motels;
4. resort cabins, private mountain homes and guest houses;
5. accessory buildings and uses . . . which may include, but not be limited by, swimming pools, restaurants and the sale of curios, post cards and similar merchandise, which accessory buildings and uses need not be confined within the principal accommodations building; provided that such accessory buildings and uses shall be designed and used principally incidental to and as a part of the use to which they are accessory;
6. tourist homes;
7. signs for identification . . . provided each use has not more than two such signs and that each sign does not exceed 60 square feet in area, except that the foregoing limitation on the number and size of signs shall not apply to identification signs attached to and being a part of the building in which is carried on the advertised use.

16.2 Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads . . . same as major highways.

16.3 Minimum Lot Area..... 15,000 sq. ft.

16.4 Minimum Lot Width..... 120 feet

16.5 Minimum Side and Rear Yards (each yard)..... 10 feet

16.6 Maximum Height of Buildings 50 feet

Section XVII
T, TOURIST DISTRICT

17.1 Uses Permitted

1. All uses permitted in the A, Accommodations District, subject to the use provisions specified for such district unless otherwise stated herein;
2. automobile parking areas;
3. curio, art, gift and antique shops;
4. gasoline service stations; primarily for retail sale of petroleum products;
5. greenhouses, for retail sales;
6. grocery stores;
7. lodges and private clubs;
8. medical and dental clinics;
9. membership clubs;
10. places serving food and beverages within a building;
11. private schools;
12. professional offices;
13. riding stables . . . provided all buildings, corrals, and storage of odor and dust producing substances are located at least 250 feet from the center line of all right of ways and at least 200 feet from all property lines;
14. stands for the sale of agricultural products produced on the premises;
15. any branch of trade, production or creative endeavor employing labor and capital in a light manufacturing process which does not involve the storage of merchandise outside of a building; which is not noxious, offensive or objectionable to abutting properties because of excessive noise, odors, dust, fumes, smoke, vapor or vibration; and which operates independently of extensive loading docks and heavy equipment.
16. signs for identification . . provided each use has not more than two such signs and that each sign does not exceed 60 square feet in area.

17.2 Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads . . . same as major highways.

Section XIX

C, COMMERCIAL DISTRICT

19.1 Uses Permitted

1. All uses permitted in the B, Business District;
2. places for the conduct of any general business, commercial, or wholesale activity not of an industrial or manufacturing nature;
3. animal hospitals;
4. automobile repair shops;
5. bakeries;
6. bottling works;
7. builder's supply yards, and lumber yards;
8. cabinet making and carpenter shops;
9. cleaning and dyeing establishments;
10. dairy processing and distribution plants;
11. frozen food lockers;
12. ice and cold storage plants;
13. laundries;
14. machine shops;
15. manufacture of handicraft products;
16. plumbing shops;
17. printing and publishing establishments;
18. roofing shops;
19. storage warehouses; storage of oil, gasoline and petroleum products;
20. tin shops;
21. upholstery shops;
22. used car lots;
23. signs for identification and advertising ... provided that each sign does not exceed 90 square feet in area.

19.2 Minimum Setback

1. Arterial highways ... 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways ... 75 feet from center line or 30 feet from property line, whichever is greater.
3. Other public road right of ways and established private roads ... same as major highways.

19.3 Minimum Rear Yard 20 feet-

ADDENDUM: 19.1--Uses Permitted

1. All uses permitted in the B, Business District subject to the restrictions contained in Section 18.1.14.

Section XX

I, INDUSTRIAL DISTRICT

20.1 Uses Permitted

1. All uses permitted in the C, Commercial District except the following:
multiple family dwellings;
boarding and rooming houses;
hotels and motels;
tourist homes; and
provided one family dwellings shall be permitted only if they
are located on a lot of one acre or more;
2. Any industrial or manufacturing operation provided dust, fumes
odors, smoke, vapor, noise and vibration shall be effectively con-
fined within the boundaries of the I, Industrial District.

20.2 Minimum Setback

1. Arterial highways . . . 100 feet from center line or 30 feet from
property line, whichever is greater.
2. Major highways . . . 75 feet from center line or 30 feet from prop-
erty line, whichever is greater
3. Other public road right of ways and established private roads . . .
same as major highways.

20.3 Minimum Rear Yard. 20 feet

Section XXI

O, OPEN DISTRICT

21.1 Uses Permitted

1. All uses not otherwise prohibited by law except that none of the following uses shall be established unless approved by the Board of County Commissioners:

alfalfa dehydrators;
automobile wrecking yards;
cement, lime or gypsum manufacturing;
chemical plants;
fertilizer manufacturing;
fireworks or explosives manufacturing;
garbage, offal or dead animal dumping or reduction operations;
glue manufacturing or fat rendering, or distillation of bones;
junk yards;
slaughter houses and packing houses;
smelting of ore; and

- ✓ in general, all uses which may be obnoxious, offensive or hazardous by reason of creating traffic safety problems---by being materially detrimental to the public welfare or injurious to property or improvements in the neighborhood---or by emission of unusual and excessive amounts of dust, smoke, fumes, gas, noxious odors or noises; and any addition to any of the foregoing uses.

In reviewing the proposed establishment of any of the above listed uses, the Board of County Commissioners shall consider whether substantial detriment to the public good in conflict with the intent and purpose of this resolution might result from such use.

21.1 Minimum Setback

1. Arterial highways ... 100 feet from center line or 30 feet from property line, whichever is greater.
2. Major highways ... 75 feet from center line or 30 feet from property line, whichever is greater. *20' from property line*
3. Other public road right of ways and established private roads ... same as major highways.

Section XXII

PARKING REQUIREMENTS

22.1 Space Required

There shall be required in connection with the construction or addition to any of the following buildings and uses, off-street parking space as hereinafter designated:

1. dwellings one space for each dwelling unit;
2. churches, hospitals, and other public buildings (except schools) one space for each 100 sq. ft. of floor area;
3. hotels, motels, rooming and boarding houses and similar accommodation units one space for each rental unit;
4. places serving food and beverages one space for each 100 sq. ft. of building floor area;
5. all other business and commercial uses one space for each 200 sq. ft. of building floor area;
6. industrial and manufacturing establishments one space for each 4 employees.

22.2 Description of Spaces

Each off-street parking space shall be not less than 10 feet wide and 20 feet long; shall be provided with vehicular access to a street or alley; shall be surfaced with gravel, asphalt, concrete or equivalent; shall be properly drained; and shall be located within convenient walking distance of the principal building for which the parking space is required.

22.3 Reduction

No part of an off-street parking space required for any building or use for the purpose of complying with the provisions of this resolution shall be included as a part of an off-street parking space similarly required for another building or use.

Section XXIII

SUPPLEMENTARY REGULATIONS

23.1 Uses Permitted

1. general in any zoning district where a building, structure, or use is enumerated, any other building, structure or use which is similar to those enumerated and not more obnoxious or detrimental to the area in which it is located, shall be permitted.
2. illumination
of uses..... any light used to illuminate signs, parking areas or for any other purposes shall be so arranged as to reflect light away from nearby residential properties, and away from vision of passing motorists.

23.2 Minimum Setback

1. measuringall setbacks shall be measured from the center of the paved portion of the roadway; except on right of ways which are not paved, the measurement shall be from the center of the right of way.
2. major streets and
highway plan.. whenever an official major street and highway plan has been adopted, the setback requirements of such street and highway plan shall be in effect if such requirements are more restrictive than the requirements of this resolution.

23. Minimum Lot Area
and
Minimum Lot Width

1. established lots. where an individual lot was held in separate ownership from adjoining properties or was platted and either recorded or used for sale purposes at the time of passage of this resolution, and has less area and/or less width than required in other sections of this resolution, such a lot may be occupied according to the permitted uses provided for the district in which such lot is located.

SUPPLEMENTARY REGULATIONS (continued)

2. reduction no part of an area or width required for a lot for the purpose of complying with the provisions of this resolution shall be included as an area or width required for another building.
3. adjacent streets and roads.....in measuring the minimum lot area where the requirement is one acre or more, one-half of the area of adjacent public rights of way may be included. On all lots smaller than one acre, the minimum lot area shall not include portions of adjacent rights of way.

23.4 Minimum Yards

1. measuring rear yardsin the B, C, C1, and I Districts the minimum rear yard may be measured from the center of an adjacent alley.
2. reduction.....no part of a yard required for any building for the purpose of complying with the provisions of this resolution shall be included as a yard for another building, and all yards shall be open and unobstructed except as otherwise provided herein.
3. architectural features.....cornices, canopies, eaves or similar architectural features may extend into a required yard not more than two feet.
4. porches.....open, unenclosed, uncovered porches at ground level may extend into a required yard not more than 6 feet.
5. fire escapesfire escapes may extend into a required yard not more than 6 feet.
6. reversed corner lotsthe side yard along the street side of a reversed corner lot shall be not less than the required front yard for principal buildings along such a side street.

SUPPLEMENTARY REGULATIONS (continued)

23.5 Maximum Height of Buildings

1. special exceptions.....the height limitations of this resolution shall not apply to church spires, bellfries, cupolas, penthouses, or domes not used for human occupancy, nor to chimneys, ventilators, skylights, water tanks, silos, parapet walls, cornices without windows, antennas, or necessary mechanical appurtenances usually carried above the roof level.
2. near airports. . .it shall be unlawful to construct, build, or establish any building, trees, smoke stack, chimney, flag pole, wire, tower, or other structure or appurtenance thereto which may constitute a hazard or obstruction to the safe navigation, landing, and take-off of aircraft at a publicly used airport.

Section XXIV

NON-CONFORMING USES AND BUILDINGS

Except as provided in this section the lawful use and location of any building or land existing at the time of enactment of this resolution, or of any amendments to this resolution, may be continued even though such use or location does not conform to the requirements of this resolution.

24.1 Repairs and Maintenance

1. Ordinary repairs and maintenance of a non-conforming building shall be permitted.

24.2 Restoration

1. A non-conforming building which has been damaged by fire or other causes may be restored to its original condition, provided such work is commenced within one year of such calamity.

24.3 Abandonment

1. Whenever a non-conforming use has been discontinued for a period of one year, such use shall not thereafter be reestablished, and any future use shall be in conformance with the provisions of this resolution, except that a feed lot may continue operation when animals are not on the premises for a period of time not to exceed three years, as long as feed lot structures remain.

24.4 Change in Use

1. A non-conforming use shall not be changed to a use of lower, or less restrictive classification; such non-conforming use may, however, be changed to another use of the same or higher classification.

24.5 Extensions

1. A non-conforming use shall not be extended, except in the E and E1 Estate Districts, where the large minimum lot areas and large setback and yard requirements shall permit the extension of a non-conforming use and the construction of new non-conforming buildings, provided such extensions and construction are located within 200 feet of non-conforming buildings existing at the time of enactment of this resolution or subsequent amendments, and provided the new non-conforming uses are of the same or higher classification than the established non-conforming use.

Section XXV
AMENDMENTS

25.1 General Procedure

Amendments to this resolution shall be in accordance with the laws of the State of Colorado which require the following actions before adoption of any such amendments:

1. Study and recommendation of the proposed amendment by any appointed zoning area representatives and by the Larimer County Planning Commission.
2. Completion of a public hearing before the Board of County Commissioners after at least 30 days' notice of the time and place of such hearing shall have been given by at least one publication in a newspaper of general circulation within the County.

25.2 Special Procedure

Before submitting a report and recommendation on any proposed amendment to this resolution, as required in No. 1 above, the County Planning Commission shall hold a public hearing on the proposed amendment in which event the following special conditions shall be required:

1. A notice of said hearing shall be published once in a newspaper serving the general area of the amendment at least 7 days prior to the hearing date.
2. For proposed amendments to the "Zoning Area Map" a written notice of said hearing may be sent first class mail at least 7 days prior to the hearing date, to the property owners within the area in question, and within 500 feet of the area in question. Mailing such notice shall be discretionary with the County Planning Commission and failure to mail such notice shall not affect the validity of any proceeding before said Planning Commission.
3. For proposed amendments, a fee of \$25.00 shall be charged to cover the cost of advertising and processing.

Section XXVI

BOARD OF ADJUSTMENT, VARIANCES

The Board of Adjustment of the County of Larimer shall have the following functions and powers in respect to this resolution in addition to, and not by way of limitation of, the functions, powers and procedures set forth in the resolution creating said Board of Adjustment:

26.1 Appeals to the Board of Adjustment

1. By whom taken... appeals to the Board of Adjustment may be taken by any person aggrieved by his inability to obtain a building permit, or by the decision of any administrative officer or agency based upon or made in the course of the administration or enforcement of the provisions of this resolution. Appeals may be taken by any officer, department, board or bureau of the county affected by the granting or refusal of a building permit or other decision of any administrative office or agency based on or made in the course of the administration or enforcement of the provisions of this resolution.
2. Appeals to the Board of Adjustment must be made in writing and filed with the Board of Adjustment within sixty (60) days of the act or failure to act or decision appealed from.
3. Powers of the Board of Adjustment upon appeals... upon appeals the Board of Adjustment shall have the following powers:
 - (a) To hear and decide appeals where it is alleged by the appellant that there is error in any order, requirement, decision or refusal made by an administrative official or agency based on or made in the enforcement of this resolution.
 - (b) To hear and decide, in accordance with the provisions of this resolution as hereafter provided, requests for special exceptions or for interpretations of the zoning map or for conditional use permits as provided in this resolution.
 - (c) Where by reason of exceptional narrowness, shallowness or shape of a specific piece of property at the time of enactment of this resolution, or by reason of exceptional topographic conditions of such piece of property, the strict application of any regulation enacted under this resolution would result in peculiar and exceptional practical difficulties to, or exceptional and undue hardship upon, the owner of such property, to authorize, upon appeals relating to said property, a variance from such strict application so as to relieve such difficulties or hardship; provided, however;

BOARD OF ADJUSTMENT, VARIANCES (continued)

1. that such relief may be granted without substantial detriment to the public good and without substantially impairing the intent and purpose of this zoning resolution; and
 2. that there are exceptional circumstances applying to the specific piece of property which do not apply generally to the remaining property in the same zoning area or neighborhood.
- (d) to permit the extension of a non-conforming use throughout a lot or any building thereon upon such terms and conditions as the Board of Adjustment shall deem just and proper; provided, that such extension may be granted without substantial detriment to the public good and without substantially impairing the intent and purpose of this zoning resolution.
- (e) permit an enlargement of existing feed lot or movement of the location of an existing feed lot upon such terms and conditions as will safeguard the rights and property value of the adjoining property owners.

26.2 Procedure

1. All meetings and hearings of the Board of Adjustment shall be open to the public.
2. All hearings of the Board of Adjustment upon any appeal shall be held not earlier than twenty (20) days from the date that publication of the notice of said hearing in a newspaper serving the general area of the property involved shall have been made. Such publication shall contain the name of the appellant, the description of the property involved, a statement of the nature of the prayer of the appellant, and the time and place of the hearing.
3. Upon application for variances relating to the use requirements of this resolution, the Board of Adjustment, if it deems the same advisable and practical, may send a written notice of said hearing by first class mail at least seven (7) days prior to the hearing date to owners of property within five hundred (500) feet of the property in question, and may post an eighteen inch (18) by twenty four inch (24) sign on the property, giving notice of said hearing. This provision shall be discretionary with the Board of Adjustment and the failure of the Board of Adjustment to send said notice or of any person to receive said notice shall not affect the validity of any hearing or determination of the Board of Adjustment.

BOARD OF ADJUSTMENT, VARIANCES (continued)

4. Upon applications for variances which do not relate to the use requirements of this Resolution, the Board of Adjustment, if it deems the same advisable and practical, may send a written notice of said hearing by first class mail at least seven (7) days prior to the hearing date to owners of property adjacent to the property in question. This provision shall be discretionary with the Board of Adjustment and the failure of the Board of Adjustment to send said notice or of any person to receive said notice shall not affect the validity of any hearing or determination of the Board of Adjustment.
5. For all Board of Adjustment appeals, a fee of \$25.00 shall be charged to cover the cost of advertising and processing.

26.3 Appeals from the Board of Adjustment

1. Appeals from decisions of the Board of Adjustment may be made to the Board of County Commissioners of the County of Larimer or to the Courts, as provided by law; provided that such appeals shall be filed with the said Board of County Commissioners or a Court of proper jurisdiction within sixty (60) days of the date of the decision from which the appeal is taken.

Section XXVII

INTERPRETATION, VALIDITY, ENFORCEMENT

27.1 Interpretation

1. In their interpretation and application, the provisions of this resolution shall be held to be minimum requirements adopted for the promotion of the public health, safety and welfare. Whenever the requirements of this resolution are at variance with the requirements of any other lawfully adopted rules, regulations or resolutions, the more restrictive, or that imposing the higher standards shall govern.

27.2 Validity

1. Should any section, clause or provision of this resolution be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of this resolution as a whole or any part thereof, other than the part so declared to be invalid.

27.3 Enforcement

1. It shall be unlawful to erect, construct, reconstruct, alter, or change the use of any building or other structure within the zoned area in Larimer County without obtaining a building permit from the Board of County Commissioners or its authorized representative, and the Board of County Commissioners or its authorized representative shall not issue any permit unless the plans of and for the proposed erection, construction, reconstruction, alteration, or use fully conform to the zoning regulations then in effect. For all building permits required, a fee to be set by the Board of County Commissioners shall be charged by Larimer County, except that all construction with a total cost of less than \$100.00 shall be exempt from paying a building permit fee.

Section XXVIII

VIOLATIONS AND PENALTIES

28.1 General

It shall be unlawful to erect, construct, reconstruct, alter, maintain or use any buildings or structure or to use any land in violation of any provision of this zoning resolution, or any amendment thereof. Any person, firm or corporation, either as owner, lessee, occupant or otherwise, who violates any of the provisions of this resolution or any amendment thereof, or who interferes in any manner with any person in the performance of a right or duty granted or imposed upon him by the provisions of this resolution, shall be guilty of a misdemeanor, and, upon conviction thereof, shall be fined not more than One Hundred Dollars (\$100.00) or imprisoned not more than ten (10) days, or both. Each day during which such violation shall continue shall be deemed to be a separate offense.

28.2 Legal Action

In case any building or structure is, or is proposed to be erected, constructed, reconstructed, altered, maintained or used, or any land is proposed to be used, in violation of any provision of this resolution, or any amendment thereof, the Board of County Commissioners of the County of Larimer, the District Attorney in and for the County of Larimer, or any owner of real estate within the zoned area, in addition to other remedies provided by law, may institute injunction, mandamus, abatement or any other appropriate action or proceeding to prevent, enjoin, abate or remove such unlawful erection, construction, reconstruction, alteration, maintenance, or use.

Section XXIX

DEFINITIONS

29.1 General

When not inconsistent with the content, words used in the present tense include the future; words in the singular number include the plural number; words in the plural number include the singular number; and the masculine includes the feminine.

29.2 Terms and Words

For the purpose of this resolution certain terms and words are hereby defined as follows:

1. "Accessory Building"

A detached subordinate building, the use of which is customarily incidental to that of the main building or to the main use of the land and which is located on the same lot with the main building or use, and not including those buildings defined herein as farm and garden buildings.

2. "Accessory Use"

A use naturally and normally incidental to, subordinate to, and devoted exclusively to the main use of the premises.

3. "Alley"

A public thoroughfare, not exceeding 35 feet in width which affords only a secondary means of access to abutting property.

4. "Area, Minimum Lot"

The total area within the property lines of the lot, excluding adjacent streets except as otherwise provided.

5. "Boarding and Rooming House"

A building or portion thereof which is used to accommodate, for compensation, three or more boarders or roomers, not including members of the occupant's immediate family who might be occupying such building. The word "compensation" shall include compensation in money, services or other things of value.

6. "Building"

Any permanent structure built for the shelter or enclosure of persons, animals, chattels or property of any kind and not including advertising sign boards or fences.

DEFINITIONS (continued)

7. "Building Height"
The vertical distance from the "grade" to the highest point of the roof surface.
8. "Building, Principal"
A building in which is conducted the main or principal use of the lot on which said building is situated.
9. "Commercial Feed Yard"
A confined enclosure for the feeding and fattening of livestock where the average number of livestock exceeds 10 animals per acre of feed yard and where less than 50% of the roughage type feed is raised on the same farm premises.
10. "Dwelling"
Any building or portion thereof which is used as the private residence or sleeping place of one or more human beings, but not including hotels, motels, tourist courts, resort cabins, clubs, hospitals, or similar uses. All dwellings shall contain at least 600 square feet of floor area as measured along the outside walls of the building.
11. "Dwelling, One Family"
A detached building designed exclusively for, and occupied by one family.
12. "Dwelling, Multiple Family"
A building occupied by two or more families living independently of each other, but not including motels or hotels.
13. "Dwelling Unit"
One or more rooms in a dwelling designed for or occupied by one family living and cooking on the premises.
14. "Family"
A family is any number of persons living and cooking together on the premises as a single dwelling unit, but it shall not include a group of more than three individuals not related by blood or marriage.
15. "Farm and Garden Buildings and Uses"
Those buildings and structures used to shelter or enclose livestock, poultry, feed, flowers, field equipment or similar uses; and those uses of land devoted to raising of crops, poultry, or livestock but not including commercial feed yards as defined herein.

DEFINITIONS (continued)

16. "Grade"
Grade (ground level) is the average of the finished ground level at the center of all walls of a building. In case walls are within 25 feet of a sidewalk, said ground level shall be measured at the sidewalk.
17. "Home Occupation"
Any use conducted principally within a dwelling and carried on by the inhabitants thereof, which use is clearly incidental and secondary to the use of the dwelling for dwelling purposes and does not change the character thereof, provided that no article is sold or offered for sale except such as may be produced by members of the immediate family residing on the premises.
18. "Hospital"
Any building or portion thereof used for the accommodation and medical care of sick, injured, or infirm persons and including sanitariums, but not including clinics, rest homes, and convalescent homes.
19. "Hotels and Motels"
Any building or portion thereof containing six or more guest rooms used, designed to be used, let or hired out for occupancy by persons on more or less a temporary basis.
20. "Junk Yard"
A yard open to air, used for the sale, storage, or display of odd pieces of metal, paper, glass, or other material, which may or may not be partly or wholly assembled into useful objects, motor vehicles, or machinery.
21. "Kennel"
Any lot or premises on which four or more animals at least four months of age are harbored.
22. "Lot"
Any parcel, tract of land or combination thereof, shown on a plat of record or designated by a metes and bounds description which is occupied or intended for occupancy by a use permitted in this Resolution which has its principal frontage on a public right-of-way, which shall include open spaces and parking spaces as required by this Resolution, which may not include more than one principal building together with its accessory buildings, and which shall contain at least 100,000 square feet unless otherwise specified; or, if public sewer and water facilities are available to said parcel, tract of land or combination thereof, it shall contain at least 7,500 square feet. (Effective January 31, 1972.)
23. "Lot, Reversed Corner"
A corner lot having its side street line substantially a continuation of the front lot line of the first lot to its rear.

DEFINITIONS (continued)

24. "Lot Line, Front"
The property line dividing a lot from a street. On a corner lot only one street line shall be considered as a front line and the shorter street frontage shall be considered the front line.
25. "Lot Line, Rear"
The line opposite the front lot line.
26. "Lot Line, Side"
Any lot lines other than front lines or rear lot lines.
27. "Membership Club"
An association of persons, whether incorporated or unincorporated, for some common purpose but not including groups organized primarily to render a service carried on as a business.
28. "Non-Conforming Buildings"
A building or structure or portion thereof built according to all official County regulations prior to the effective date of this resolution, or any amendment thereto, and conflicting with the provisions of this resolution.
30. "Occupied"
The word "occupied" includes arranged, designed, built, altered, converted, rented or leased, or intended to be occupied.
31. "Outdoor Advertising Signs"
Any card, cloth, paper, metal, painted, wooden, glass, plaster, stone, or other sign of any kind placed for outdoor advertising purposes on the ground, or any tree, wall, bush, rock, post, fence, building, structure or thing whatsoever.
32. "Person"
The word "person" shall also include association, firm, co-partnership, or corporation.
33. "Professional Office"
An office for professions such as physicians, dentists, lawyers, architects, engineers, artists, musicians, designers, teachers, realtors, accountants, and others, who through training are qualified to perform services of a professional nature, and where no storage or sale of merchandise exists.
34. "Public Water and Public Sewer Facilities"
Those facilities of a municipality or sanitation district approved by the Larimer County Health Officer and by the State Department of Health for general public use.

DEFINITIONS (continued)

35. "Resort Cabin"
A building designed for temporary recreational purposes in mountainous terrain and used to accommodate individuals on a term occupancy basis.
36. "Setback"
The distance extending across the full width of the lot between the center line of the adjoining street and the nearest line or point of the building.
37. "Signs for Identification"
Such signs shall refer only to the principal use of the lot upon which such signs are located.
38. "Street"
Any public or private thoroughfare which affords the principal means of access to abutting property, and including such terms as "public right of way", "highway", "road", and "avenue".
39. "Structure"
Anything constructed or erected, which requires location on the ground or attached to something having a location on the ground, but not including fences or walls used as fences less than six feet in height, poles, lines, cables, or other transmission or distribution facilities of public utilities.
40. "Trailer Court"
An area for the temporary placing of movable vehicles designed and used for human occupation and housekeeping.
41. "Use"
The purpose for which land or building is designed, arranged, or intended, or for which either is or may be occupied or maintained.
42. "Used Car Lots"
A retail sales area for the sale of automobiles which are in such condition as to meet all requirements of the State and County for license and operation.
43. "Width of Lot"
The distance parallel to the front lot line measured between side lot lines through that part of the building or structure where the lot is narrowest.
44. "Yard"
An open space other than a court, on a lot, unoccupied and unobstructed from the ground upward, except as otherwise provided in this resolution.

DEFINITIONS (continued)

45. "Yard, Front"

A yard extending across the full width of the lot between the front lot line and the nearest line or point of the building.

46. "Yard, Rear"

A yard extending across the full width of the lot between the rear lot line and the nearest line or point of the building.

47. "Yard, Side"

A yard extending from the front yard to the rear yard between the side lot line and the nearest line or point of the building or accessory building attached thereto.

Section XXX

REPEALS AND ENACTMENT

30.1 Repeals

1. All zoning and land use resolutions of the County of Larimer, are hereby repealed.
2. The repeal of any of the above-mentioned resolutions does not revive any other resolution or portion thereof repealed by said resolution.
3. Such repeals shall not affect or prevent the prosecution or punishment of any person for the violation of any resolution repealed hereby, for an offense committed prior to the repeal.

30.2 Enactment

1. Upon approval and adoption of this resolution a certified copy thereof, including all maps herein referred to, shall be filed as provided by law in the office of the County Clerk and Recorder of Larimer County.
2. This resolution shall be in full force and effect after its approval and adoption as provided by law.
3. Approved and adopted this 24th day of October, 1963.

THE BOARD OF COUNTY COMMISSIONERS
OF THE COUNTY OF LARIMER

By: _____
Chairman

/S/
Deputy Clerk of said Board

EXHIBIT "E"

EXHIBIT "F"

EXHIBIT "G"

WATER INFORMATION

There are no known aquifers on the Martin Marietta property. The only water present is from runoff from rains or snows. This water is pumped from the quarry and put onto the reclaimed areas to facilitate growth. This is the only water that will be trapped. When reclamation is completed, there will be no ponds or lakes left.

Martin Marietta has a two-inch tap, No. 1305, in Section 36, T4N, R70W. Martin Marietta can use 420,000 gallons of water per month from this tap. Water is used for reclamation and dust suppression.

There will be no disturbance of any neighboring water rights in this mining operation.

LITTLE THOMPSON VALLEY WATER DISTRICT

DIRECTORS:
DEAN G. ANDERSON
ED. S. F. BEIN
NORMAN GIBBS DVM
DAVID M. GEE
CARLY J. SALMONSON

TELEPHONE 532-2036
107 WELCH AVENUE
DRAWEE, CO
BETHOOD, COLORADO 80513

November 20, 1975

MANAGER:
LOVILLO H. FAGAN

RECEIVED

NOV 21 1975

LYONS PLANT

Dear Sir:

The information in our letter of November 18, 1975 concerning quarterly minimums was incorrect. Following is the corrected schedule:

<u>METER SIZE</u>	<u>QUARTERLY MINIMUM</u>	<u>GALLONS AVAILABLE for MINIMUM CHARGE</u>
5/8"	\$ 30.00	15,000
3/4"	66.00	60,000
1 "	112.50	135,000
1 1/2"	225.00	552,000
2 "	360.00	1,092,000

Very truly yours
LITTLE THOMPSON VALLEY WATER DISTRICT

Lovillo H. Fagan

Lovillo H. Fagan, Manager

LHF/ma
cc:

Area 13
H.B. _____ TAP APPLICATION
H. _____

Board of Directors

LITTLE THOMPSON VALLEY WATER DISTRICT

Application is hereby made for a water tap to property located in Section 36, Township 4 North, Range 72 West of the 6th P.M. which land is owned by the undersigned applicant.

If application for service is accepted, applicant agrees that the property will be included as part of the District and to abide by the rules and regulations of the District as set forth by the Board of Directors.

If application for service is not accepted by the Board of Directors of LITTLE THOMPSON VALLEY WATER DISTRICT, or in the event the applicant decides to withdraw this application for a water tap, the Tap Fee of \$5125.00 herein enclosed, and receipt of which is hereby acknowledged, will be refunded to applicant with the EXCEPTION of any expense which might be incurred by the District in employing the services of their Engineer for feasibility study.

In the event a water line extension is necessary to reach the location desired for the tap, applicant agrees that the cost of said extension will be advanced to the District in accordance with the extension policy of the District.

User certifies that final lot grade will be established prior to installation. District will not be liable for expense of relocation if required after installation.

Dated this 7 day of May, 19 73.

Elmer L. Kessler
Applicant

Tap No. 1305
Tap Fee Received: ☒
Land Included in District:
Tap Installed:
Contract for Service signed:

By: Frank H. Fager

Martin Marietta Cement Western Division

P.O. Box 467
Applicant's Address

Laramie Wyo
Town State

Tap Fee
Cash - 2525.00
4 tap fees @ 630 2600.00
\$5125.00

NOV 18 1975

LOVILLO H. FAGAN

November 18, 1975

Members and Customers of
Little Thompson Valley Water District

Increased revenues have made it possible for us to discard our present system of billing in advance on a basic contract, adopting a billing for water you have actually used at a decreasing rate as quantity of use increases.

Following is the new rate schedule adopted by the District. The schedule is on a monthly basis, but we will continue to bill quarterly. These rates have been adopted after careful study and review, and compare favorably with rates set by other domestic water systems in the area. These rates will be effective January 1, 1976.

1st	5,000 gallons	\$2.00 Per M (Minimum)
Next	5,000 "	\$1.00 Per M
Next	30,000 "	.70¢ " M
Next	60,000 "	.30¢ " M
All over	100,000 "	.25¢ " M

QUARTERLY MINIMUMS

5/8" Tap	15,000 gallons	\$ 30.00
3/4" Tap	120,000 "	\$108.00
1" Tap	372,000 "	\$180.00
1 1/2" Tap	1,092,000 "	\$360.00
2" Tap	2,052,000 "	\$600.00

If you have made an annual payment, we will continue to bill under the former rates until the end of the annual period unless we have permission in writing, authorizing us to bill the balance of the credit at the new rates. We urge all customers in this category to review this with us, as in most cases, the new rate schedule will result in a savings to the customer.

All customers will be billed after they use the water instead of before. Since you will no longer be paying for water you are not using, we hope you will approve of the new billing system. It should result in a savings to the average user.

If you have any questions, please contact us.

Very truly yours,
LITTLE THOMPSON VALLEY WATER DISTRICT

Lovilo H. Fagan
Lovilo H. Fagan, Manager

LHF/bh

Area 13
M.B. _____
H. _____

TAP APPLICATION

Board of Directors

LITTLE THOMPSON VALLEY WATER DISTRICT

Application is hereby made for a water tap to property located in Section 36, Township 11 North, Range 70, West of the 6th P.M. which land is owned by the undersigned applicant.

If application for service is accepted, applicant agrees that the property will be included as part of the District and to abide by the rules and regulations of the District as set forth by the Board of Directors.

If application for service is not accepted by the Board of Directors of LITTLE THOMPSON VALLEY WATER DISTRICT District, or in the event the applicant decides to withdraw this application for a water tap, the Tap Fee of \$5,125.00 herein enclosed, and receipt of which is hereby acknowledged, will be refunded to applicant with the EXCEPTION of any expense which might be incurred by the District in employing the services of their Engineer for feasibility study.

In the event a water line extension is necessary to reach the location desired for the tap, applicant agrees that the cost of said extension will be advanced to the District in accordance with the extension policy of the District.

User certifies that final lot grade will be established prior to installation. District will not be liable for expense of relocation if required after installation.

Dated this 7 day of May, 19 73.

22

Tap No. 1305
Tap Fee Received: ☒
Land Included in District:
Tap Installed:
Contract for Service signed:

Charles F. Kessler
Applicant

By: Frank H. Ferguson

Martin Marietta Cement Western Division

P.O. Box 467
Applicant's Address

Laramie Wyo 82001
Town State

Tap Fee
Cost - 2525.00
4 tap options 2600.00
@ 650 \$5125.00

Domestic Water Agreement

This Agreement made this 2nd day of April, ~~XXX~~ 1973 by and between

Martin Marietta Corp.

hereinafter referred to as User, and The Little Thompson Valley Water District, a statutory water district, hereinafter referred to as the District, is upon the following terms and conditions:

WHEREAS the District is constructing facilities for the purpose of furnishing Domestic Water to the users within said District; and

WHEREAS the user is desirous of obtaining domestic water for his property,

NOW, THEREFORE, the parties hereto agree as follows:

1. Upon ratification by the Board of Directors of the District, this agreement shall be a binding contract between User and the District.

2. For the purpose of this agreement, a unit of water is one thousand gallons of domestic water per month for one calendar year, delivered to User's property.

3. User hereby applies for 420 units. The District agrees to furnish afore said number of units to his tap,

No. 1305 in Section 36 Township 4 North, Range 70 West of the 6th P.M., PROVIDED that the District shall find it to be economically feasible to construct a water line to User.

4. User hereby agrees to pay to the District in advance each quarter, such sum as may be prescribed from time to time by the Board of Directors of the District as the water rate for the number of units belonging to User. The payments to be

paid by User will be \$ 323.50 per quarter. Payments shall start when the District notifies the User that water is available for delivery, payment for the first quarter being apportioned to the number of days remaining in said quarter.

User further agrees that he will pay for the number of units owned by him, for a period of twenty years or until his units have, with the approval of the Board of Directors of the District been transferred to another user.

User further agrees that he will not permit other persons to use water furnished to him under this agreement, without prior approval of the Board of Directors of the District.

User further agrees that in event of default in payment for any quarter, the balance due for the remainder of the 20-year period, at the current rate at time of default, shall at the election of the District, become immediately due and payable.

5. Subject to the proviso in Paragraph 3 above, the District agrees to furnish water to User each month according to the number of units for which he has applied herein, PROVIDED, that the District shall not be liable for loss to User for failure to deliver water because of war, riot, insurrection, breaks in the water system or Acts of God. The District shall endeavor to repair all breaks promptly.

6. The units issued to User under this agreement may be transferred in whole or in part under such regulations as the Board of Directors of the District may prescribe.

7. Should the User require more water than is furnished by the units he owns, the District will deliver additional water, subject to such regulations as the Board of Directors of the District may establish. The User shall be entitled to priority over non-users in applying for additional units when issued by the District.

8. The User agrees to abide by such other rules and regulations of the District regarding the use of water as may be established from time to time by the Board of Directors of the District.

In Witness Whereof the parties have subscribed their names the day and year first above written.

Effective date: Upon Delivery of Tap 1973

proved

Little Thompson Valley Water District

C. E. Burleson

Land Owner

SEP 18 1973

Ann Spomer, Recorder

APR 2 - 1974

LYONS PLANT

IN THE DISTRICT COURT FOR
THE NINETEENTH JUDICIAL DISTRICT
No. 14773ORDER FOR INCLUSION OF
LAND IN LITTLE THOMPSON VALLEY WATER DISTRICTIN RE THE ORGANIZATION OF
LITTLE THOMPSON VALLEY WATER
DISTRICT, LARIMER, WELD, AND
BOULDER COUNTIES, COLORADO

The above named District having filed a petition with the Board of Directors of said District, including in the said District certain land therein and hereinafter described, and it appearing to the Court, and the Court so finding, that said order was issued upon petition of all of the fee owners of the land sought to be included, that notice of the meeting of the said Board of Directors, at which the said petition was considered was published according to law, and that all procedures required by law for the inclusion of said land in said District have been complied with:

Now therefore it is ORDERED, ADJUDGED, AND DECREED that the following described land be, and it hereby is included in and made a part of said District:

The N 1/2 of the Southeast Quarter of Section 31, Township 5 North, Range 68 West of the 6th Principal Meridian, Larimer County, Colorado. Jack A. Mlynock.

The West 100 acres of the North one-half of Section 36, Township 4 North, Range 70 West of the 6th P.M. together with all water rights pertaining thereto.

The North one-half of Section 35, Township 4 North, Range 70 West of the 6th P.M., EXCEPT that portion thereof described as follows: A tract of land located in the NE 1/4 of Section 35, Township 4 North, Range 70 West of the 6th P.M., described as commencing at the Northeast corner of said Section 35, and considering the North line of the NE 1/4 of said Section 35 to bear North 89°27'25" West, with all bearings herein being relative thereto; thence North 69°37'25" West along the North line of the NE 1/4 of said Section 35, a distance of 124.75 feet to the TRUE POINT OF BEGINNING; Thence continuing North 89°37'25" West, 1682.49 feet; Thence along the North right of way line of county road by the following four bearings and distances: South 78°47'15" East, 584.69 feet; South 68°37'13" East, 182.53 feet; North 80°22'45" East, 542.31 feet; North 83°02'45" East, 295.35 feet to the True Point of Beginning. All of the above described property being in the county of Larimer, State of Colorado.

The North one-half of the Southwest one-quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. together with all mineral rights pertaining thereto, excepting the following: A strip of land located in the east half of the Southwest quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. and lying between 2 lines extended to the North line of said East half of the Southwest quarter and to the South line of said East half of the Southwest quarter said strip being of a width of 25.00 feet on the left and 25.0 feet on the right, measured at right angles to the following described centerline: Beginning at point 1 in the South line of said East half of the Southwest quarter, being Sta. 52/10.0 in the centerline of a proposed access road, whence the South quarter corner of said Section 35, bears South 88°54'09" East 627.9 feet distant; thence North 42°21' East 321.4 feet to

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2131-335

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H

40000

point 2; thence North 77°04' West 341.2 feet to point 3; thence North 17°44' West 441.6 feet to point 4; thence South 0°00' West 1,000.0 feet to point 5; thence North 0°22' West 573.2 feet to point 6; the North line of said East half of the Southwest quarter, being 573.2 feet in the centerline of said proposed narrow road, thence the East corner corner of said Section 35 bears South 89°24'03" East 2,633.3 feet, a point to the United States of America from North Platte, South Platte, and Big Horn River Settlement for roads, as shown in Warranty Deed dated May 2, 1952 and recorded May 10, 1952 in Book 231 at page 51.

The North one-half of the Southeast-quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. together with all mineral rights pertaining thereto. Martin Marietta Cement, National Division, C.E. Burlington.

That portion of the Southeast Quarter of the Southwest Quarter of Section 35, Township 5 North, Range 50 West of the 6th Principal Meridian, Larimer County, State of Colorado more particularly described as follows: Beginning at the Southwest corner of said Section 35; thence along the South line of said Section South 40°40'00" West 1121.30 feet to the approximate centerline of an existing ditch; thence along said centerline North 32°28'10" West 130.37 feet; thence North 5°52'17" West 171.21 feet; thence North 09°40'43" East 124.44 feet to the TRUE POINT OF BEGINNING; thence continuing along the approximate centerline North 31°27'29" West 226.39 feet; thence North 32°01'40" West 382.05 feet; thence North 21°22'00" West 154.60 feet to the North line of said Southwest quarter of the Southwest Quarter; thence leaving said approximate centerline and along said North line South 80°40'52" East 841.21 feet to the Northeast corner of said Southwest Quarter of the Southwest Quarter; thence along the South line of said Southwest Quarter South 00°26'20" West 411.30 feet to a point that bears North 00°26'20" East 411.30 feet from the Northeast corner of said Southwest Quarter of the Southwest Quarter; thence along the approximate centerline of an existing irrigation ditch North 85°12'50" East 263.03 feet to the TRUE POINT OF BEGINNING; together with an easement for ingress and egress and utility purposes described as follows: Beginning at the Southeast corner of said Southwest Quarter of the Southwest Quarter; thence along the South line of said Southwest Quarter of the Southwest Quarter South 89°49'02" West 50.09 feet; thence North 00°26'20" West 411.30 feet to the approximate centerline of an existing irrigation ditch; thence along said approximate centerline South 85°12'50" East 50.14 feet to the East line of said Southwest Quarter of the Southwest Quarter; thence along said East line South 00°26'20" West 411.30 feet to the point of beginning. Subject to irrigation ditch rights of way. Grant, Walter and Ray, Pleno, Agents.

Done in Open Court this 21st day of April, 1973

Ronald A. Carpenter

BY THE COURT:

Certified to be a true and correct copy of the original in my custody.

Date: April 21, 1973

[Signature]
Clerk of Court

NOTED FOR RECORD

FILED IN BOOK 231 PAGE 51

APR 23 1973

CLERK OF DISTRICT COURT

WYOMING

CLERK OF DISTRICT COURT

WYOMING

505306

CHANCE -
Your copy
[Signature]

PETITION FOR INCLUSION OF LAND
IN WATER DISTRICT

To the Board of Directors of

State of Colorado:

The undersigned, constituting all of the fee owners of the land herein-
after described, respectfully petition(s) that said land be included in

State of Colorado.

The undersigned represent(s) that the said land is capable of being
served with the facilities of the said District and do(es) hereby assent to the
inclusion of said land in said District.

The land which the undersigned seek(s) to include in said District is
described as follows:

SEE ATTACHED SHEET

Dated this 22nd day of JUNE, ~~1972~~ 1973

MARTIN MARIETTA CEMENT

WESTERN DIVISION

C. E. Burleson

STATE OF COLORADO)

COUNTY OF Larimer)

ss.

The foregoing instrument was acknowledged before me this 22 day of

June, 1973 by C. E. Burleson

My commission expires Sept 1, 1973

Witness my hand and official seal.

[Signature]
Notary Public

- 1.) the West 100 acres of the North one-half of Section 36, Township 4 North, Range 70 West of the 6th P.M. together with all water rights pertaining thereto.
- 2.) The North one-half of Section 35, Township 4 North, Range 70 West of the 6th P.M.,

EXCEPT that portion thereof described as follows:

A tract of land located in the NE $\frac{1}{4}$ of Section 35, Township 4 North, Range 70 West of the 6th P.M., described as commencing at the Northeast corner of said Section 35, and considering the North line of the NE $\frac{1}{4}$ of said Section 35 to bear North 89° 37' 25" West, with all bearings herein being relative thereto; thence North 89° 37' 25" West along the North line of the NE $\frac{1}{4}$ of said Section 35, a distance of 124.75 feet to the TRUE POINT OF BEGINNING:

Thence continuing North 89° 37' 25" West, 1682.49 feet;

Thence along the North right of way line of county road by the following four bearings and distances:

South 78° 47' 15" East, 684.69 feet;

South 88° 37' 15" East, 182.53 feet;

North 80° 22' 45" East, 542.81 feet;

North 83° 02' 45" East, 295.35 feet to the True Point of Beginning.

ALL OF THE ABOVE DESCRIBED PROPERTY BEING IN THE COUNTY OF LARIMER, STATE OF COLORADO.

- 3.) The North one-half of the Southwest one-quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. together with all mineral rights pertaining thereto, excepting the following:

A strip of land located in the east half of the Southwest quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. and lying between 2 lines extended to the North line of said East half of the Southwest quarter and to the South line of said East half of the Southwest quarter said strip being of a width of 25.0 feet on the left and 25.0 feet on the right, measured at right angles to the following described centerline: Beginning at point 1 in the South line of said East half of the Southwest quarter, being Sta. 52/16.8 in the centerline of a proposed access road, whence the South quarter corner of said Section 35, bears South 88° 54' 09" East 627.9 feet distant; thence North 42° 21' East 321.4 feet to point 2; thence North 77° 08' East 241.2 feet to point 3; thence North 17° 44' West 441.6 feet to point 4; thence North 8° 47' West 1,354.4 feet to point 5; thence North 0° 22' East 576.8 feet to point 6 in the North line of said East half of the Southwest quarter, being Sta. 82/27.8 in the centerline of said proposed access road, whence the East quarter corner of said Section 35 bears South 89° 24' 03" East 2,838.3 feet, a grant to the United States of America from Scott Edmonds, Jessie Edmonds and Ray Albert Samuelson for roads, as shown in Warranty Deed dated May 7, 1952 and recorded May 10, 1952 in Book 931 at page 81.

- 4.) The North one-half of the Southeast quarter of Section 35, Township 4 North, Range 70 West of the 6th P.M. together with all mineral rights pertaining thereto.

EXHIBIT "H"

WILDLIFE

The present fauna on the Martin Marietta Larimer County property has a rather low diversity with specific populations quite low. These observations have been made over the last three to four years while the quarry has been in operation. The observations, not recorded, were made by lay persons and in no way reflect a professional opinion.

A number of factors are possible contributions to the low populations of various wild animals:

- (a) Extensive farming and ranching has resulted in a landscape characterized by pastures and irrigated hayfields and croplands.
- (b) Extensive grazing by cattle and horses has reduced the cover for suitable habitat for many species.
- (c) The development and activity associated with the mining operations also affects the fauna of this region.

The following is a list of animals and birds seen on Martin Marietta property. These animals and birds have been seen by Martin Marietta personnel since 1973.

Mammals

Cottontail Rabbits

These rabbits are very popular and can be seen almost daily.

Jackrabbits

These rabbits are also quite popular. Many of these rabbits are seen in the mine workings among the rocks and boulders.

Prairie Dogs

There is a prairie dog town in Pit "A" area. These animals move when the operation encroaches their territory. It appears that there will not be any negative impact on these animals.

Coyote

The coyote is common locally. Several have been sighted on the property. Some coyotes have been taken by predator control operations on adjacent properties in past years.

Mule Deer

A couple have been seen in past years, but it is believed they were just passing through. Due to the population density and the various activities, the mule deer would not inhabit the area on a permanent basis.

Skunks

Skunks have been seen at various times. Skunks are quite predominant in farm and ranch areas.

Bobcat

A bobcat has been seen on the property. It is believed that the bobcat is an irregular and rare visitor to this area.

Birds

The present avian habitat on the Martin Marietta Larimer County quarry appears to be very sparse and unable to support any large number of birds. The property has several brushy ravines that will support a limited variety of species, but as there are virtually no trees on the property, this support will be rather limited.

The close proximity to both foothills and plains will place the property within an important north-south flyway for migrating birds, and adverse weather will cause many species to stop over in the area. Most of the stop-over would be in the area of the Trevarton Ranch, one-half mile south of the property. The Trevarton Ranch supports a large variety of birds, both resident and stop-over, has coniferous and brushy habitat, and the Little Thompson Creek flows through the property. The stop-over and local birds undoubtedly "work" the brushy habitat on Martin Marietta property in search of food.

The brushy habitat on the property will support some nesting of sparrows, towhees, wrens, meadowlarks, and possibly some raptors (hawks and owls).

The open, hilly parts of the property will support a very limited number of birds; namely, meadowlarks and sparrows, but as the property has fairly large prairie dog settlements, there will be heavy feeding by hawks and owls, with the possibility of an eagle or two frequenting the area.

It is felt that the mining operation will not have much of an adverse effect on the property's bird population due to the fact that the mining operation is in an area that has sparse fauna or suitable bird habitat. Reclamation, presently ongoing on the property, will undoubtedly aid the bird population due to the planting of native and commercial seeds and grasses.

Vultures

The turkey vulture has been observed in the area during the summer months, but is rather an infrequent visitor.

Accipiters

Goshawks are infrequent visitors to the area during the winter and early spring time.

Sharp-shinned hawks are very prominent in the area, probably nests in immediate area.

Harriers

Marsh hawks are fairly common to the property as they primarily work open fields.

Buteos

Rough-legged hawks are common to the property during the winter season; improbable nester in the area.

Red-tailed hawk is very common and seen often by observers.

Swainson's hawk - several sightings but not very common to the area.

Eagles

Both the golden and the bald have occasionally been observed during the winter months, but, mostly, they are passing through the area and stay for very short periods of time.

Falcons

The sparrow hawk is the smallest of falcons and is very common to the property; it can be seen sitting on poles or telephone wires besides the plant roads or in the quarry areas.

Doves

Mourning dove is common to the property.

Owls

Great horned owl - probably nesting on property, would undoubtedly feed on large prairie dog population.

Goatsuckers

Common nighthawk has been observed in flight at early evening hours, catching flying insects. Common to area of property.

Hummingbirds

Broad-tailed and rufous are infrequent visitors to the property; others have not been observed, but during migration, undoubtedly pass through property.

Flycatchers

Eastern and western kingbirds both observed on property at farmlands and open fields. Western kingbird slightly more common on property than eastern species. The property has a variety of flycatchers; namely, the willow, least, hammond's, dusky, western and western wood pewee.

Larks

Horned lark - large flocks (20-100) congregate on open fields and farmlands during winter months. Very common.

Swallows

Barn, violet-green and rough-winged have been observed on property. Barn swallow would be the most common of the three.

Jays, Magpies and Crows

All three prefer brushy or riparian habitat.

Black-billed magpie is common and conspicuous in lightly wooded and open farmlands.

Common crow is a frequent resident in wooded areas.

Chickadees

Both black-capped and mountain chickadee are common on property.

Nuthatches, Creepers

Both white-breasted and red-breasted nuthatch have been observed on property. Pygmy nuthatch and brown creeper observed on property. All four prefer wooded areas.

Wrens

The house wren is fairly common in brushy and rocky areas, nests on property. Canyon wren should nest on property.

Mockingbirds and Thrashers

The mockingbird is an infrequent visitor to the property. Catbird, brown thrasher and sage thrasher are more common, prefer brushy habitat.

Thrushes, Solitaires and Bluebirds

The robin is a common and well known bird on the property, mostly inhabits the fields and brushy ravines.

Townsend's solitaire - several sightings during nesting season and probably nests on or near the property in wooded areas.

Spotted-breasted thrushes - there are a limited number of hermit and swainson's thrushes which inhabit the wooded understory; the veery is also common to property but prefers a wetter habitat than other thrushes.

Bluebirds - the western and mountain are common to the property but for only short periods of time as they migrate through this area to nesting areas in the foothills and mountains.

Gnatcatchers and Kinglets

Blue-gray gnatcatcher is common to the wooded areas of the property.

Ruby crowned kinglet is usually a migrate through the property with short stopovers as it prefers conifers for nesting.

Shrikes and Starlings

Both the northern and loggerhead shrike inhabit the property with the loggerhead possibly a little more abundant. Can be seen perching on telephone wires in area.

Vireos

The three vireos common to the property are: solitary, red-eyed, and warbling; prefer shrubby and wooded areas.

Wood Warblers

Warblers are almost entirely insectivorous; most nest within ten feet of the ground in brushy or wooded areas on or near the property.

Black and White, Orange Crowned, Virginia's, Parula, Magnolia, Nashville, Black Throated Gray, Myrtle, Audubon, Hybrid Myrtle x Audubon, Bay-breasted, Blackpoll, Ovenbird, Northern Waterthrush, MacGillivray, Common Yellowthroat, Yellow-breasted Chat, Wilson's and American Redstart.

Weaver Finch

House sparrow are common on property.

Blackbirds, Tanagers

Western meadowlark and brownheaded cowbird are common to farmlands and open pasturelands. Western Tanager, Bullock's and Hybrid Baltimore x Bullock's Oriole are common to wooded and brushy areas.

Finches, Sparrows, Grosbeaks and Buntings

These comprise the largest family of North American birds. This family would occupy all property habitat. A small percentage of these mentioned will nest on the property; most prefer seeds although some will take berries and insects.

Rose-breasted Grosbeak, Black-headed Grosbeak, Evening Grosbeak, Blue Grosbeak, Lazuli Bunting, Hybrid Lazuli x Indigo Bunting, Pine Siskin, American Goldfinch, House Finch, Lesser Goldfinch, Vesper Sparrow, Lark Sparrow, Clay-colored Sparrow, Tree Sparrow, Chipping Sparrow, Brewers Sparrow and Song Sparrow.

Literature Cited

- (1) Reports of Christmas Bird Counts for Longmont Area.
- (2) Banding Records of Mrs. Allegra Collister.
- (3) Field Trip Records of Foothills Audubon Club of Longmont.
- (4) Robbins, Bruun, Zim, Singer, 1966
Birds of North America

ENVIRONMENT

The presence of any rare or endangered species of plants or animals has not been revealed. Certain activities already in effect are significantly affecting the fauna and flora of this area. Some of these activities include (a) ranching, (b) predator control, (c) suburbanization.

There will, of course, be negative impacts upon the fauna and flora of the Martin Marietta property during mining operations. Recovery should be rapid and substantial. Post-reclamation conditions should be substantially improved over pre-mining conditions. At this time, it is difficult to say if the fauna will be superior to that presently existing. Due to rapid urbanization of the area along the front range, it is impossible to predict what the fauna will be like in 25 years.

In general, the dryland pasture will provide grazing for farm animals such as cattle and horses. Overall, the area will be very productive and will conform to the existing land use, flora, and fauna.

It is the intent of the reclamation plan to restore the land to as near the original land use. In many cases, the changing of contours will make the land more productive or desirable. The reclaimed land will be better overall and will make the environment very desirable for future generations.

EXHIBIT "I"

SOILS INFORMATION

The topsoil on the Martin Marietta Larimer County property is generally six to eight inches thick. Following are soil analyses, as performed by Hauser Laboratories of Boulder, Colorado. The soil samples were taken in the Pit "A" area and are representative of the entire property.

HAUSER LABORATORIES

5680 CENTRAL AVE. P.O. BOX 8, BOULDER, COLORADO 80502 • PH 303 443 4467

May 27, 1977
Test Report No. 77-370



CLIENT: Martin Marietta Cement Co.
P. O. Box 529
Lyons, Colorado 80540
Attention: Mr. M. L. Berg

P.O.No. 10373

MATERIAL: Soil collected from Larimer County Quarry on 5-19-77.

TESTS: Soil tests as listed below.

RESULTS:	Test	Method	Results
	pH	USDA Handbook 60	7.7
	Conductivity, mmhos/cm	" " "	1.22
	Moisture Saturation %	" " "	46
	Sodium Absorption Ratio	" " "	.046
	Organic Matter, %	" " "	0.6
	Plant Available Phosphorus ppm as P_2O_5	Bicarbonate Method	23
	Plant Available Potassium ppm as K_2O	USDA Handbook 60	120
	Particle Size Distribution	ASTM Sieves	
		greater than 2.0 mm	16.2%
		1.0	2.5
		.589	0.7
		.425	1.1
		.175	6.0
		.125	6.4
		.043	32.3
		less than .043	34.8

Tests Supervised By:

Ronald D. Bruns

Ronald D. Bruns, Analytical Chemist

RECEIVED

JUN 2 1977

LYONS PLAN

EXHIBIT "J"

CO-RANGE-6
(File Code No. Range-18)
7/75

U.S. Department of Agriculture
Soil Conservation Service

William A. Dickson
Conservationist

Date 7-11

RANGE CONDITION INVENTORY

RANGE SITE Loam Plains

SOIL UNIT Kim loam

LAND UNIT _____

LOCATION OF INVENTORY 1/4 Sec 36 T91N R70W

VEGETATION

List of Plant Species (Grasses, forbs and shrubs)	Estimated per- cent composition by weight	Percent in po- tential plant community
Canada ryegrass	20	15
Downy brome (cheat grass)	15	10
Smooth brome	35	40
Sawn	5	10
needle thread	1	5
mountain mahogany	T	1
Yucca prickly pear	T	1
rabbit brush	T	2
thistle curly leaf	1	2
Curly cup gumweed	2	3
Snake weed	2	5
		T
Wild onion	T	1
Mustard	T	1
racemed poplar	T	1
Flea Grass	T	T
Wild Flower	T	1
misc.		2
Totals	100	100

Range Condition Poor Percent _____

Ground Cover: 25 %. Total Annual Yield 200 lbs./ac. air dry

Description of Growing Season (amount of precipitation and distribution)

Comments: Use, availability, and other significant factors

Plants are stressed, some are dead, only in the year

* Condition may be lowered one condition class from Excellent, Good or Fair when total annual yield is significantly (25%) below the site's potential).

GUIDE FOR RATING RANGE TREND

Considering the potential for this site, class of livestock, season of use, recreational use, fire, and other influences, rate the following by giving each item a rating of 4 to 0. Interpolate between indicators for ratings 3, 2, and 1.

Trend Indicators

REPRODUCTION:

Major species of the potential plant community are producing seedlings, plants are of mixed ages; there is evidence of active tillers, rhizomes, stolons (4)

Major species not reproducing (0) 1

PLANTS RESIDUE AND CURRENT UTILIZATION:

Litter produced by major species is abundant for the site and current utilization is moderate (4)

Litter is absent and utilization is severe (0) 0

COMPOSITION CHANGES:

Dominant species of the potential plant community are maintaining their place in the stand (4)

Dominant species are absent or noticeably decreasing in percentage, while minor species and species not native to the community are increasing (0) 1

PLANT VIGOR:

Major species of the potential plant community are strong, healthy, productive and well rooted (4)

Major species are showing noticeable die-off (0) 1

SOIL SURFACE FACTORS:

Accelerated soil erosion is not evident. Past erosion signs have healed. Water intake for the kind of soil is favorable.. (4)

Accelerated erosion is obvious. Soil stability is poor as seen by failure of erosion signs to be healing. Water intake for the kind of soil is unfavorable (0) 2

Ratings between 11 and 20 inclusive = Improving Trend

Ratings between 0 and 10 inclusive = Declining Trend 6

NOTES

Area seems highly over grazed

EXHIBIT "K"

CLIMATE

The climatology information was obtained from a weather station two miles ESE of Longmont, Colorado and Boulder County. Longmont is eight miles east of Lyons. The weather station coordinates are latitude 40° 10' N and longitude 105° 4' west with an elevation of 4950 feet above sea level. The period of record is 69 years on temperatures and 74 years on precipitation. The normals are as follows by month:

	<u>Precipitation</u>	<u>Temperature</u>
Jan.	0.39 in.	26.8 ⁰ F
Feb.	0.40 in.	31.0 ⁰ F
Mar.	0.86 in.	35.9 ⁰ F
Apr.	1.54 in.	47.1 ⁰ F
May	2.53 in.	56.6 ⁰ F
June	1.89 in.	65.0 ⁰ F
July	1.21 in.	71.6 ⁰ F
Aug.	1.03 in.	69.9 ⁰ F
Sept.	0.98 in.	61.0 ⁰ F
Oct.	1.05 in.	50.4 ⁰ F
Nov.	0.54 in.	37.4 ⁰ F
Dec.	0.32 in.	30.3 ⁰ F
Annual	12.74 in.	48.6 ⁰ F

The general climate is sunny with an average of 300 sunny days per year. The winters are mild with temperatures getting up into the 40 and 50-degree range during the day; however, there are extremes where the temperatures dip below zero for several days at a time. Overall, the climate can be considered mild.

EXHIBIT "L"

EXHIBIT "M"

LARIMER COUNTY COMMISSIONERS

P. O. BOX ~~22~~ 1190

FORT COLLINS, COLORADO 80521

November 10, 1972

Martin-Marietta Corporation
% Holme Roberts and Owen
1700 Broadway
Denver, Colorado 80202

ATTENTION: Mr. Brian D. Fitzgerald

Dear Mr. Fitzgerald:

On June 16, 1972, the Larimer County Board of Commissioners, after meeting with representatives of Martin-Marietta Corporation, approved the Proposed Limestone Extraction operation in Sections 35 and 36, Township 4 North, Range 10 West of the 6th P.M., subject to three conditions. (See Enclosure).

In a meeting on November 9, 1972, between yourself, Mr. Clarence Burleson of Martin-Marietta, and the Larimer County Board of Commissioners; you requested a temporary waiver of condition number three. The Larimer County Board of Commissioners now grants that request subject to the following conditions:

Prior to signing an agreement with Larimer County concerning dust control on affected county roads Martin-Marietta is permitted to move in such equipment as is necessary to remove overburden in the area to be excavated. The overburden removed shall not be hauled off the premises over any road under Larimer County jurisdiction. After the overburden is removed, equipment used for this operation may be removed from the site. Before any overburden or Limestone shall be removed from the premises, condition number three, regarding dust control on Larimer County roads, shall be met to the satisfaction of the Larimer County Board of Commissioners.


William C. Manuel, Chairman


Warren F. Wolaver, Member


John A. Michie, Member

Enclosure

CC: Larimer County Planning
Mr. William Campton
Mr. Clarence Burleson

LARIMER COUNTY COMMISSIONERS

P. O. BOX 577

FORT COLLINS, COLORADO 80521
June 16, 1972

Mr. Curtis Dove
Vice-President for Operation
145th East Avenue and Apache
Tulsa, Oklahoma 74116

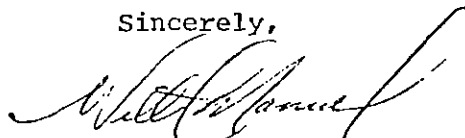
RECEIVED NOV 14 1972

Dear Sir:

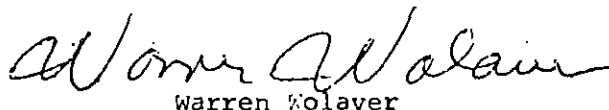
The proposed limestone extraction in Sections 35 and 36, Township 4 North, Range 70 West of the 6th P.M. is in an O-Open and FA-1-Farming Zoning District. The proposed use has been reviewed by the Board of Larimer County Commissioners and approved on June 15, 1972 subject to the following:

- 1) reclamation is subject to State law (Colorado Revised Statutes, 1963, Chapter 92, Article 32) and enforcement shall be by the State of Colorado;
- 2) there would be basically two areas of excavation as per the attached map;
- 3) an agreement with the Larimer County Commissioners be signed before any excavation, regarding dust control on those county roads in Larimer County.

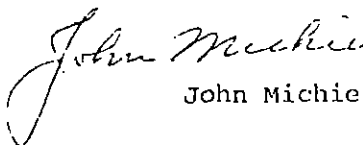
Sincerely,



William C. Martel
Chairman



Warren F. Wolaver



John Michie



PERMIT TO OPERATE

Colorado Department of Health
Air Pollution Control Division

Certifies that MARTIN-MARIETTA CORPORATION (Cement Division)
has been authorized to operate the following equipment:

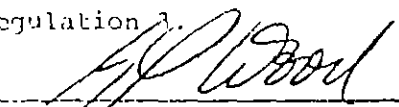
Description of equipment	Basic	Control	Description of equipment	Basic	Control
Limestone Quarrying	1				
Operation					

located at Berthoud Area

having shown to the satisfaction of the Division that the above equipment is constructed/modified to operate without causing a violation of the present Air Pollution Control Regulations of the Commission. This permit is issued conditional that applicant operates the quarry in accordance with the conditions specified in Authority to Construct, Permit to Operate, and Promise to Perform (Permit N. C-10,145) as approved by the Air Pollution Control Commission meeting of June 14, 1973 and attached hereto
Permit No. p-10,251 Permit Date June 20, 1973 Expiration Date June 1, 1975

This permit is revokable under the Provisions of Regulation 3.

APCE 24(2-72-5)


Division Director

AUTHORITY TO CONSTRUCT, PERMIT TO OPERATE, AND PROMISE TO PERFORM
(Permit No. 010,145 Authority to Construct
and Permit No. 010,251 Permit to Operate)

THIS AUTHORITY TO CONSTRUCT AND OPERATE issued to MARTIN-MARLETTA CORPORATION

(hereinafter referred to as "Martin") this 20 day of June, 1973 by the STATE OF COLORADO acting through the Director of the Air Pollution Control Division (hereinafter referred to as "State")

WITNESSETH:

WHEREAS, Martin desires to operate a limestone quarry site in Sections 35 and 36, Twp. 4N, R. 70W of the 6th P.M. in the County of Larimer and State of Colorado, hereinafter referred to as "property", and to use public roadways in both Larimer and Boulder counties in the haulage of quarried limestone to Martin's cement plant at Lyons, Colorado; and

WHEREAS, section 66-31-12(4) of the Colorado Revised Statutes of 1963, as amended, constitutes the Colorado Air Pollution Control Commission as the administrative body authorized to promulgate procedures whereby permission to construct, install.... any machine, equipment, or other device....which may cause or contribute to air pollution shall be granted or denied by the Air Pollution Control Division; and

WHEREAS, the Colorado Air Pollution Control Commission has promulgated procedures governing the authority to construct and permit to operate effective February 1, 1972, designated as Regulation No. 3, pursuant to Section II "Authority to Construct" and Section III "Permit to Operate" whereby the State shall issue such authorization prior to the construction and operation of a new source; and

WHEREAS, pursuant to Regulation No. 3, Section II.D, the State has determined to its satisfaction, subject to conditions hereinafter stated and made a part hereof, that the new air contamination source will be constructed and operated to function so as not to cause a violation of the emission control regulations of the said Commission or of any applicable national or local air pollution emission control law, ordinance, standard, or regulation; that the said source is to be designed, built, and equipped in accordance with the best available practical methods to reduce, prevent, and control air pollution; and that the said source will be designed so as not to significantly endanger maintenance or attainment of any ambient air quality standards adopted by said Commission as determined by criteria set forth in Section IV.C.2 of said Regulation No. 3;

NOW THEREFORE, pursuant to the authority vested in the State pursuant to section 66-31-12(4)(f), C.R.S. 1963, as amended, the State hereby issues to Martin permission to construct and operate the limestone quarry and its haulage roads on the property and use hard surfaced public roads for haulage equipment to and from the property, both said quarry and haulage road operation being considered as the entire operation hereunder authorized, subject to all other rules and regulations of the Air Pollution Control Commission and of the local, state, and national government and statutes, ordinances, resolutions, and administrative and judicial mandates of such political subdivisions. For the purposes of this authorization the term "hard surfaced public road" shall mean a public road having one or more layers of a pavement structure designed to accommodate a traffic load, the top layer or wearing surface of which resists skidding, traffic abrasion, and the disintegrating effects of climate. Martin in accepting such authorization to construct and permit to operate agrees to abide by and perform, according to, as a condition precedent to its right to operate hereunder, the following conditions, limitations, and undertakings, to wit:

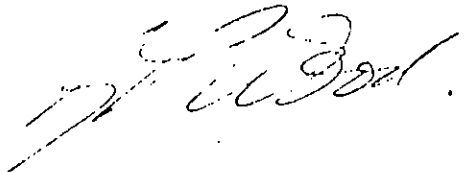
1. Martin agrees to provide sufficient water at the property from pipeline, truck, or other source to be used on the property so as to control fugitive dust emissions which are the direct or indirect result of any quarrying or haulage operation in connection with operation of the quarry.
2. The exposed portion of the quarry shall not exceed five (5) acres at any given time and, inclusive thereof, no more than fifteen (15) acres of the property shall have the soil exposed or disturbed at any time.
3. There shall be only one major access road for ingress and egress to and from the operating area and each quarry.
4. Chemical agents, or measures equally or more effective than chemical agents, shall be used properly so as to control fugitive dust emissions from the overburden and reject piles and from haulage roadways included as part of the entire operation.
5. The applicant shall retain the services of a certified meteorologist and shall follow his longrange and shortrange forecasts and instructions regarding the best practical times for blasting and shall set its blasting schedule so

as to minimize the escape of any resulting fugitive dust from the property into the northeast and southeast quadrants. Blasting shall be limited to the period between 8:00 a.m.

and 5:00 p.m. Monday through Friday. The execution of this condition is subject to the safety regulations and orders of the Colorado Bureau of Mines.

6. Wet drilling and sequential blasting shall be employed to reduce dust emissions.
7. Haulage equipment shall be wetted down, treated, or covered when necessary to minimize the amount of dust emitted in transit from the quarry site, and any bidding negotiations solicited by or on behalf of Martin for haulage and contracts therefor, whether expressed or implied, shall specify the necessity of such wetting, treating, or covering as a condition thereof. Haulage trucks shall not follow one another closer than 300 feet.
8. The transport of limestone from the quarry to the applicant's Lyons plant shall be via adequate and properly maintained hard surfaced public roads to control dust emissions.
9. The reclaiming of quarried land shall be completed as soon as possible following extraction of limestone deposits therefrom and according to the best practical plan and time schedule as approved by the State and in compliance with "Land Stabilization and Reclamation Agreement" dated April 10, 1973 by and between the State of Colorado acting by and through its Director of Natural Resources and Commissioner of Mines and Martin, consistent with amendments thereto.
10. Wind fences, berms, water, or other measures of equal or greater effectiveness shall be used to control dust emissions when high winds occur.
11. For a period of one year from the date hereof and thereafter during reasonable periods upon the request therefor by the State, the applicant agrees to monitor the property for any escaping fugitive dust, using a reasonable number of Hi-Vol samplers as specified by the State, each to be located at freely accessible sites designated by the State. The results shall be reported to the State periodically according to its specifications and requirements.

12. Martin shall permit inspections by the State staff personnel of the Air Pollution Control Division at all reasonable times and shall permit, with the consent of an authorized supervisor given in writing to the State and in his presence, the taking of photographs, dating and marking the time of taking of same as a part of any division report, with the understanding that such photographs shall not constitute the basis of a charge of violation of opacity regulations; but the occasion of such inspections may result in citations for violations issued by the State. Prior to the transport of limestone from the quarry to the Lyons plant Martin shall notify the State of compliance with the construction related conditions of this and the State shall inspect the quarry for compliance with said construction related conditions. Martin agrees further to abide by all other regulations hereinafter duly promulgated and adopted by the Air Pollution Control Commission. The issuance of the within authority to construct and permit to operate and the imposition of conditions as stated herein shall not relieve Martin from the effect of other laws and regulations, ordinances, or resolutions of applicable governing political subdivisions and the enforcement of same.
13. Martin agrees in any contract with agents, independent contractors and employees of Martin, whether expressed or implied, to incorporate by reference in any written contract and otherwise give reasonable notice of the conditions to which these presents are subject as conditions of operation and performance hereunder.
14. If any condition or term of this authorization is held to be invalid, the remainder of the conditions and terms not so held shall continue to be effective if such remainder would then continue to conform to the terms and requirements of applicable law.



#



EMISSION PERMIT

RECEIVED

MAY 23 1977

COLORADO DEPARTMENT OF HEALTH
AIR POLLUTION CONTROL DIVISION
4210 E. 11th. Ave., Denver, 80220

LYONS PLAN

ISSUED TO MARTIN MARIETTA CEMENT, Western Division, P.O.Box 467, Lyons, Colorado

THE AIR CONTAMINATION SOURCE FOR WHICH THIS PERMIT IS GRANTED IS DESCRIBED AS FOLLOWS:

Operation of limestone quarry located in Sections 35 and 36,
Township 4N, Range 70W of the 6th P.M. in the County of Larimer,
State of Colorado.

THE EQUIPMENT SUBJECT TO THIS PERMIT INCLUDES:

Quarry equipment: loaders, drill, trucks, scraper, water truck, etc.

THIS PERMIT IS SUBJECT TO THE GENERAL TERMS AND CONDITIONS SET FORTH ON THE REVERSE SIDE AND IS ALSO SUBJECT TO THE FOLLOWING SPECIFIC TERMS AND CONDITIONS:

1. Applicant is to operate the quarry in accordance with but not limited to all conditions specified in the original Authority to Construct, Permit to Operate and Promise to Perform (Permit Nos. C-10,145 and P-10,251) and all provisions of Regulation No. 1, Section II.D.1. through 9.
2. Sufficient water is to be provided at the property from pipeline, truck, or other source to be used on the property so as to control fugitive dust emissions which are the direct or indirect result of any quarrying or haulage operation in connection with operation of the quarry.
3. The exposed portion of the quarry shall not exceed five (5) acres at any given time and, inclusive thereof, no more than fifteen (15) acres of the property shall have the soil exposed or disturbed at any time.
4. There shall be only one major access road for ingress and egress to and from the operating area and each quarry.
5. Chemical agents, or measures equally or more effective than chemical agents, shall be used properly so as to control fugitive emissions from the overburden and reject piles and from haulage roadways included as part of the entire operation.
6. The applicant shall retain the services of a certified meteorologist and shall follow his longrange and shorrange forecasts and instructions regarding the best practical times for blasting and shall set its blasting schedule so as to minimize the escape of any resulting fugitive dust from the property into the northeast and southeast quadrants. Blasting shall be limited to the period between 8:00 a.m. and 5:00 p.m. Monday through Friday. The execution of this condition is subject to the safety regulations and orders of the Colorado Bureau of Mines.

(Continued)

7. Wet drilling and sequential blasting shall be employed to reduce dust emissions.
8. Haulage equipment shall be wetted down, treated, or covered when necessary to minimize the amount of dust emitted in transit from the quarry site, and any bidding negotiations solicited by or on behalf of Martin for haulage and contracts therefor, whether expressed or implied, shall specify the necessity of such wetting, treating, or covering as a condition thereof. Haulage trucks shall not follow one another closer than 300 feet.
9. The transport of limestone from the quarry to the applicant's Lyons plant shall be via adequate and properly maintained hard surfaced public roads to control dust emissions.
10. The reclaiming of quarried land shall be completed as soon as possible following extraction of limestone deposits therefrom and according to the best practical plan and time schedule as approved by the State and in compliance with "Land Stabilization and Reclamation Agreement" dated April 10, 1973 by and between the State of Colorado acting by and through its Director of Natural Resources and Commissioner of Mines and Martin, consistent with amendments thereto.
11. Wind fences, berms, water or other measures of equal or greater effectiveness shall be used to control dust emissions when high winds occur.
12. Martin shall permit inspections by the State staff personnel of the Air Pollution Control Division at all reasonable times and shall permit, with the consent of an authorized supervisor given in writing to the State and in his presence, the taking of photographs, dating and marking the time of taking of same as a part of any division report, with the understanding that such photographs shall not constitute the basis of a charge of violation of opacity regulations; but the occasion of such inspections may result in citations for violations issued by the State. Prior to the transport of limestone from the quarry to the Lyons plant, Martin shall notify the State of compliance with the construction related conditions of this and the State shall inspect the quarry for compliance with said construction related conditions. Martin agrees further to abide by all other regulations hereinafter duly promulgated and adopted by the Air Pollution Control Commission. The issuance of the within authority to construct and permit to operate and the imposition of conditions as stated herein shall not relieve Martin from the effect of other laws and regulations, ordinances, or resolutions of applicable governing political subdivisions and the enforcement of same.
13. Martin agrees in any contract with agents, independent contractors and employees of Martin, whether expressed or implied, to incorporate by reference in any written contract and otherwise give reasonable notice of the conditions to which these presents are subject as conditions of operation and performance hereunder.

(Continued)

14. If any condition or term of this authorization is held to be invalid, the remainder of the conditions and terms not so held shall continue to be effective if such remainder would then continue to conform to the terms and requirements of applicable law.

THIS PERMIT MUST BE RETAINED AND MADE AVAILABLE FOR INSPECTION UPON REQUEST, AT THE LOCATION SET FORTH HEREIN, AND THE EQUIPMENT IDENTIFIED HEREIN SHALL BE MARKED WITH THE PERMIT NUMBER IN A VISIBLE MANNER.

THIS PERMIT SHALL NOT BE TRANSFERRED WITHOUT APPROVAL OF THE DIVISION.

PERMIT NO. 1320-FD-0003

DATE ISSUED: June 1, 1977

- FINAL APPROVAL -

By


Director

March 11, 1977

RECEIVED

MAR 14 1977

AMERICAN

Mr. Norman Blake
Deputy Commissioner of Mines
Colorado Bureau of Mines
1845 Sherman Street
Denver, Colorado 80203

Dear Mr. Blake:

Enclosed is the Continuation Certificate on
Reclamation Bond 2039357 for \$50,000. This
Certificate will cover our surety requirements
through April 5, 1978.

Very truly yours,

Jim Benson
Property Manager

JB/sb
cc: Gerald Anderson
Clarence E. Burleson
R. L. Liester

Interoffice Memo

MAR 8 1976
RECEIVED

TO: Mr. R. L. Liestor
FROM: D. W. Trovinger
DATE: March 3, 1976
SUBJECT: Safeco Insurance Co. Bond No. 2039357
Colorado Land Reclamation Bond
Obligee: Colorado Bureau of Mines
Amount: \$50,000

RECEIVED

MAR 10 1976

LYONS PLAN

The subject bond has an anniversary of April 5th and while we have prepaid the premium through five years to 4/5/79, it is necessary that we show a continuation to the Colorado Bureau of Mines one year at a time.

Accordingly, attached is a Continuation Certificate for the period 4/5/76 to 4/5/77 which should be filed with the Colorado Bureau of Mines.


D. W. Trovinger

fsd

Enclosure

*Copies to
C.E. Buckleson
D.L. Anderson
J. Benson
3-8-76
Dwyer*



SAFECO INSURANCE COMPANIES

SAFECO INSURANCE COMPANY OF AMERICA
GENERAL INSURANCE COMPANY OF AMERICA
FIRST NATIONAL INSURANCE COMPANY OF AMERICA
HOME OFFICE 400 BROADWAY NEW YORK, N.Y. 10048

RECEIVED

CONTINUATION CERTIFICATE

SAFECO INSURANCE COMPANY OF AMERICA, Seattle, Washington, Surety upon

a certain Bond No. 2039357

dated effective April 5, 1973
(MONTH - DAY - YEAR)

on behalf of Martin Marietta Cement - Western Division
(PRINCIPAL)

and in favor of Colorado Bureau of Mines, Colorado
(OBLIGEE)

does hereby continue said bond in force for the further period

beginning on April 5, 1976
(MONTH - DAY - YEAR)

and ending on April 5, 1977
(MONTH - DAY - YEAR)

Amount of bond FIFTY THOUSAND AND no/100 Dollars, (\$ 50,000.00).

Description of Bond: Reclamation Bond

Premium: \$ Prepaid

PROVIDED: That this continuation certificate does not create a new obligation and is executed upon the express condition and provision that the Surety's liability under said bond and this and all Continuation Certificates issued in connection therewith shall not be cumulative and that said Surety's aggregate liability under said bond and this and all such Continuation Certificates on account of all defaults committed during the period (regardless of the number of years) said bond has been and shall be in force, shall not in any event exceed the amount of said bond as hereinbefore set forth.

Signed and dated on January 2, 1976
(MONTH - DAY - YEAR)

SAFECO INSURANCE COMPANY OF AMERICA

By

Olympia Veisman
Olympia Veisman

Attorney-in-Fact



LAND STABILIZATION AND RECLAMATION AGREEMENT

THIS AGREEMENT is entered into this 10th day of April, 1973 by and between THE STATE OF COLORADO, by and through its Director of Natural Resources and Commissioner of Mines (hereinafter referred to as "State") and MARTIN MARIETTA CEMENT - WESTERN DIVISION, a subsidiary of Martin Marietta Corporation (hereinafter referred to as "Martin").

W I T N E S S E T H :

WHEREAS, Martin desires to operate a limestone quarry in Sections 35 and 36, Township 4 North, Range 70 West, Larimer County, Colorado; and,

WHEREAS, Martin has submitted a plan on the Proposed Land Stabilization and Reclamation Procedures for the proposed limestone quarry operations; and,

WHEREAS, said limestone quarry will be operated for the purpose of mining limestone for use in Martin's cement operations; and,

WHEREAS, Section 92-32-5, C.R.S. 1963 (1969 Perm. Cum. Supp.) provides statutory authority for the Commissioner of Mines of the State of Colorado to enter into agreements with operators or persons in charge of quarry operations such as those contemplated by Martin to insure that the necessary stabilization and reclamation work will be done to prevent landslides, floods or erosion. This section of the law further provides that the Commissioner of Mines may require a performance bond conditioned upon the faithful performance of the stabilization work required by the Commissioner; and,

WHEREAS, the Commissioner's office has determined that the quarry operation to be conducted by Martin in said sections 35 and 36 could have an adverse affect on the environment and could result in landslides or erosion if proper stabilization and reclamation procedures are not followed.

NOW, THEREFORE, pursuant to the authority set out in Chapter 92, Article 32, C.R.S. 1963 (1969 Perm. Cum. Supp.) the Commissioner of Mines of the State of Colorado has determined that the following land stabilization and reclamation procedures will be followed in the limestone quarry operation of Martin in Sections 35 and 36, Township 4 North, Range 70 West, Larimer County, Colorado, and Martin hereby agrees to faithfully perform the land stabilization and reclamation work required herein.

1. Martin will monitor the fugitive dust generated by its limestone quarry operations and maintain said fugitive dust to a minimum.

2. Martin will monitor all blasting with seismograph.

3. Martin will conduct all blasting in a manner to alleviate or curtail shock and concussion nuisance by controlling the size of the blast and other methods.

4. All blasting will be scheduled insofar as possible and individuals affected by the blasting, either by noise or concussion, will be informed of the times of the blasting. All blasting will be conducted during daylight hours.

5. Martin will monitor the discharge of water from the limestone quarry operation and maintain any discharge of water from the operation within the standards set by the Water Pollution Control Commission of the State of Colorado.

6. Martin will take the necessary precautions to prevent dust from the haul roads, stock piles and slopes to prevent a violation of the fugitive dust emission standards set by the Air Pollution Control Commission of the State of Colorado.

7. Martin will conduct the limestone quarry operation in a manner so that no more than thirty acres of land is disturbed at any one time during the quarry operations.

8. Upon the depletion of the limestone from a thirty-acre or less tract Martin will immediately replace the top soil on the area, seed the area with grass or other vegetation, fertilize the area and maintain it in a manner that the grass or other vegetation will grow and prevent landslides or soil erosion.

9. All top soil removed in order to mine the limestone will be stockpiled and replaced when the limestone on that particular tract has been depleted. The top soil stock piles will be maintained at a slope not to exceed one-to-three.

10. All dump areas maintained by Martin will be constructed on a one-to-three slope, covered with top soil and planted with native grasses after contouring.

11. Hay and pasture land will be reclaimed and sufficient top soil will be placed on the area and planted in order that the area will return to hay and pasture land.

12. Land stabilization and reclamation will be maintained for a period of five years after all mining activities cease, and if the property is sold, leased or transferred in any manner, the new owner, lessee or person having control shall agree to be bound to the unexpired period of the five-year term if it has not expired.

13. All monitoring, record keeping and other matters required herein will be accomplished at the sole and exclusive expense of Martin.

14. All monitoring, samples, records and other data maintained by Martin in regard to fugitive dust, water discharge, time of explosions, etc., shall be kept and copies made available to the Commissioner of Mines' office of the State of Colorado upon request.

15. Plan and agreement will be updated annually so that new techniques can be utilized as they are produced or found.

16. Martin shall furnish the Commissioner of Mines a performance bond in the amount of Fifty Thousand Dollars (\$50,000.00) to insure that the work required herein will be accomplished.

If any of the terms, conditions and requirements of this agreement are violated at any time during the period of this agreement, the Commissioner of Mines of the State of Colorado may in his sole discretion close the quarry operation until satisfactory arrangements have been made to bring the operation into compliance with this agreement. This agreement shall be binding upon the successors and assigns of the parties hereto.

THE STATE OF COLORADO

By Norman R. Blake
NORMAN R. BLAKE
Deputy Commissioner of Mines

By T. W. Ten Eyck
T. W. TEN EYCK
Executive Director
Department of Natural Resources

MARTIN MARIETTA CEMENT - WESTERN DIVISION

ATTEST:

C. E. Burleson
Operations Manager

By W. H. Mitchell
~~Vice~~-President

EXHIBIT "N"

PERMITS

1. Permit to Store and Use Explosives

Issued by Colorado Division of Mines
Permit No. 38

2. Permit to Manufacture Explosives

Issued by Department of Treasury - I.R.S.
Permit No. 10-06-00052

3. Explosives Users Permit

Issued by Department of Treasury - Bureau of Alcohol,
Tobacco and Firearms
Permit No. 8 MD 016 33 C8 90136

4. NPDES Permit

Issued by Colorado Department of Health
Permit No. CO-0001350

5. Open Burning Permit

Issued by Boulder County Health Department
No permit number

6. Radioactive Material License

Issued by Colorado Department of Health
Permit No. Colo 143-01

7. Emission Permit for Larimer County

Issued by Colorado Department of Health
Permit No. 1320-FD-0003

EXHIBIT "O"

RICHARD M. GREEN, ASSESSOR
P. O. BOX 1637
FORT COLLINS, COLORADO 80522



FIRST CLASS MAIL
U.S. POSTAGE
PAID
PERMIT NO.
125

MARTIN MARIETTA CORP

PO BOX 467
LYONS CO

80540

RECEIVED

MAY 26 1977

24,547
DATE

MAY 24, 1977

TAX DISTRICT:
2419

LOCATION OF PROPERTY

LYONS PLAIN

PARCEL NUMBER:
04360-00-046

W 1/2 OF NW 1/4 & N 1/2 OF W 1/2 OF
E 1/2 OF NW 1/4 36-4-70

LAND

31,200

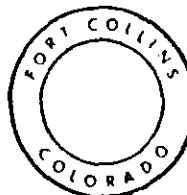
BUILDINGS

0

TOTAL ASSESSED VALUATION

31,200

RICHARD M. GREEN, ASSESSOR
P. O. BOX 1637
FORT COLLINS, COLORADO 80522



FIRST CLASS MAIL
U.S. POSTAGE
PAID
PERMIT NO.
125

MARTIN MARIETTA CORP

PO BOX 467
LYONS CO

80540

RECEIVED

MAY 26 1977

24,544
DATE

MAY 24, 1977

TAX DISTRICT:
2419

LOCATION OF PROPERTY

LYONS PLAIN

PARCEL NUMBER:
04350-00-033

N 1/2 OF SE 35-4-70

LAND

13,790

BUILDINGS

0

TOTAL ASSESSED VALUATION

13,790

*Originals
Sent to
Dick Lister
5-26-77*

RICHARD M. GREEN, ASSESSOR
P. O. BOX 1637
FORT COLLINS, COLORADO 80522



FIRST CLASS MAIL
U.S. POSTAGE
PAID
PERMIT NO.
125

MARTIN MARIETTA CORP

PO BOX 467
LYONS CO

80540

RECEIVED

MAY 24 1977

24,545
DATE

MAY 24, 1977

TAX DISTRICT:
2419

LOCATION OF PROPERTY

LYONS PLANT

PARCEL NUMBER:
04350-00-034

N 1/2 35-4-70 LESS BK 1517 PG 218

LAND

55,750

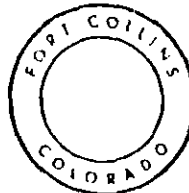
BUILDINGS

0

TOTAL ASSESSED VALUATION

55,750

RICHARD M. GREEN, ASSESSOR
P. O. BOX 1637
FORT COLLINS, COLORADO 80522



FIRST CLASS MAIL
U.S. POSTAGE
PAID
PERMIT NO.
125

MARTIN MARIETTA CORP

PO BOX 467
LYONS CO

80540

RECEIVED

MAY 24 1977

24,546
DATE

MAY 24, 1977

TAX DISTRICT:
2419

LOCATION OF PROPERTY

PARCEL NUMBER:
04350-00-035

N 1/2 OF SW 1/4 35-4-70 LESS PROPOS
ED ACCESS RD

LAND

13,630

BUILDINGS

0

TOTAL ASSESSED VALUATION

13,630

ROBERT B. MOORE
LARIMER COUNTY TREASURER
P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

1899213

04 00-035

2419

CHECK

MARTIN MARLETTA CORP
PO BOX 467
LYONS CO

APR 11 1977 80540

LYONS PLAN

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
10,490		10,490	75.558	396.30	396.30	792.60
		TAXES DUE		396.30	396.30	792.60

TAX NOTICE: DUE JANUARY 1, 1977
DELINQUENT AUGUST 1, 1977
ROBERT B. MOORE
LARIMER COUNTY TREASURER
P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

I.C.

SCHEDULE #
489921

PARCEL #
04360-00-046

TAX DIST.
2419

CASH ☐
CHECK ☐

MARTIN MARLETTA CORP
PO BOX 467
LYONS CO

APR 11 1977 80540

LYONS PLAN

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
24,000		24,000	75.558	906.70	906.70	1,813.40
		TAXES DUE		906.70	906.70	1,813.40

TAX NOTICE: DUE JANUARY 1, 1977
DELINQUENT AUGUST 1, 1977
ROBERT B. MOORE
LARIMER COUNTY TREASURER
P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

I.C.

SCHEDULE #
189905

PARCEL #
04350-00-034

TAX DIST.
2419

CASH ☐
CHECK ☐

MARTIN MARLETTA CORP
PO BOX 467
LYONS CO

APR 11 1977 80540

LYONS PLAN

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
42,890		42,890	75.558	1,620.34	1,620.34	3,240.68
		TAXES DUE		1,620.34	1,620.34	3,240.68

TAX NOTICE: DUE JANUARY 1, 1977
DELINQUENT AUGUST 1, 1977
ROBERT B. MOORE
LARIMER COUNTY TREASURER
P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

I.C.

SCHEDULE #
489891

PARCEL #
04350-00-033

TAX DIST.
2419

CASH ☐
CHECK ☐

MARTIN MARLETTA CORP
PO BOX 467
LYONS CO

APR 11 1977 80540

LYONS PLAN

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
10,610		10,610	75.558	400.84	400.84	801.68
		TAXES DUE		400.84	400.84	801.68

COUNTY OF LARIMER, STATE OF COLORADO

TAX DISTRICT 2419 TOTAL VALUATION 10,610.00

TAX AUTHORITY	LEVY	TAX
THOMPSON R-2 G F	36.86	391.08
THOMPSON R-2 CRP	4.0	42.44
THOMPSON R-2 BONDS	11.55	122.55
N COLO WTR CNSTRV DIST	1.0	10.61
LOVELAND HOSP DIST	0.9	9.55
BERTHOUD FIRE DISTRICT	2.74	29.07
LITTLE THOMPSON VAL WTR	0.0	.00
LARIMER COUNTY	18.508	196.18
TOTAL TAX DUE	75.558	801.68

PLEASE SEE
REVERSE
SIDE FOR
INSTRUCTIONS

IF THESE TAXES ARE NOT TO
BE PAID BY THE INDIVIDUAL(S)
LISTED ON THIS NOTICE, PLEASE
FORWARD IMMEDIATELY TO THE
RESPONSIBLE PARTY.

RECEIVED

JAN 6 1977

LYONS PLANT

DETACH AND RETAIN BOTH TOP COPIES FOR YOUR RECORDS.

TAX NOTICE DUE JANUARY 1, 1977
DELINQUENT AUGUST 1, 1977
ROBERT D. MOORE
LARIMER COUNTY TREASURER

P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

I.C.
[]

SCHEDULE #
489891

PARCEL #
04350-00-033

TAX DIST.
2419

CASH ☐
CHECK ☐

N 1/2 OF SE 35-4-70

MARTIN MARIETTA CORP
PO BOX 467
LYONS CO

80540

PAID BY:

INTEREST			
ADVERTISING			
FEE/PREM			
OTHER			

LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
10,610		10,610	75.558	400.84	400.84	801.68
		TAXES DUE		400.84	400.84	801.68

*Originals taken to Tulsa 1-6-77
by C.E.B.*

COUNTY OF LARIMER, STATE OF COLORADO

TAX DISTRICT 2419 TOTAL VALUATION 10,490.00

TAX AUTHORITY	LEVY	TAX
THOMPSON R-2 G F	36.86	386.66
THOMPSON R-2 CRF	4.0	41.96
THOMPSON R-2 BUNDS	11.55	121.16
N COLO WTR CHSRV DIST	1.0	10.49
LOVELAND HOSP DIST	0.9	9.44
BERTHOUD FIRE DISTRICT	2.74	28.74
LITTLE THOMPSON VAL WTR	0.0	.00
LARIMER COUNTY	18.508	194.13
TOTAL TAX DUE	75.558	792.60

PLEASE SEE
REVERSE
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INSTRUCTIONS

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JAN 6 1977

LYONS PLANT

DETACH AND RETAIN BOTH TOP COPIES FOR YOUR RECORDS.

TAX NOTICE: DUE JANUARY 1, 1977

DELINQUENT AUGUST 1, 1977

ROBERT B. MOORE

LARIMER COUNTY TREASURER

P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

1. C
[]

SCHEDULE #
489913

PARCEL #
04350-00-035

TAX DIST.
2419

CASH ☐
CHECK ☒

N 1/2 OF SW 1/4 35-4-70 LESS PROPOS

*** DESCRIPTION TRUNCATED -

COMPLETE TEXT IS ON FILE

MARTIN MARIETTA CORP
PO BOX 467
LYONS CO

80540

PAID BY:

WITH THIS OFFICE ***

INTEREST			
ADVERTISING			
FEE/PREM			
OTHER			

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
10,490		10,490	75.558	396.30	396.30	792.60
		TAXES DUE		396.30	396.30	792.60

COUNTY OF LARIMER, STATE OF COLORADO

TAX DISTRICT 2419 TOTAL VALUATION 42,890.00

TAX AUTHORITY	LEVY	TAX
THOMPSON R-2 G F	36.06	\$ 1,580.93
THOMPSON R-2 CRF	4.0	\$ 171.56
THOMPSON R-2 BONDS	11.55	\$ 495.10
N COLO. WTR CNBRV DIST	1.0	\$ 42.89
LOVELAND HOSP DIST	0.9	\$ 38.60
BERTHOUD FIRE DISTRICT	2.74	\$ 117.52
LITTLE THOMPSON VAL WTR	0.0	\$.00
LARIMER COUNTY	18.508	\$ 793.00
TOTAL TAX DUE	75.558	\$ 3,240.68

PLEASE SEE
REVERSE
SIDE FOR
INSTRUCTIONS

IF THESE TAXES ARE NOT TO
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LISTED ON THIS NOTICE, PLEASE
FORWARD IMMEDIATELY TO THE
RESPONSIBLE PARTY

RECEIVED

JAN 6 1977

LYONS PLANT

DETACH AND RETAIN BOTH TOP COPIES FOR YOUR RECORDS

TAX NOTICE: DUE JANUARY 1, 1977

DELINQUENT AUGUST 1, 1977

ROBERT H. MUCKE

LARIMER COUNTY TREASURER

P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

I.C.
[]

SCHEDULE #
189905

PARCEL #
04350-00-034

TAX DIST.
2419

CASH ☐
CHECK ☒

W 1/2 35-4-70 LESS BK 1517 PG 218

MARTIN MARLETTA CORP

PO BOX 467

LYONS CO

80540

PAID BY:

INTEREST			
ADVERTISING			
FEE/PREM			
OTHER			
LEVY	TAX-FIRST HALF	TAX-SECOND HALF	TOTAL TAX
75.558	1,620.34	1,620.34	3,240.68
	1,620.34	1,620.34	3,240.68

VALUATION LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION
42,890		42,890
		TAXES DUE

COUNTY OF LARIMER, STATE OF COLORADO

TAX DISTRICT: 2419 TOTAL VALUATION: 24,000.00

TAX AUTHORITY	LEVY	TAX
THOMPSON R-2 G F	35.86	\$ 884.64
THOMPSON R-2 CRF	4.0	\$ 96.00
THOMPSON R-2 BONDS	11.55	\$ 277.20
N COLO WTR CNSTRV DIST	1.0	\$ 24.00
LOVELAND HOBP DIST	0.9	\$ 21.60
BERTHOUD FIRE DISTRICT	2.74	\$ 65.76
LITTLE THOMPSON VAL WTR	0.0	\$.00
LARIMER COUNTY	19.508	\$ 444.27
TOTAL TAX DUE	75.558	\$ 1,813.40

PLEASE SEE
REVERSE
SIDE FOR
INSTRUCTIONS

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BE PAID BY THE INDIVIDUAL(S)
LISTED ON THIS NOTICE, PLEASE
FORWARD IMMEDIATELY TO THE
RESPONSIBLE PARTY.

RECEIVED

JAN 6 1977

LYONS PLANT

DETACH AND RETAIN BOTH TOP COPIES FOR YOUR RECORDS.

TAX NOTICE: DUE JANUARY 1, 1977

DELINQUENT AUGUST 1, 1977

ROBERT B. MOORE

LARIMER COUNTY TREASURER

P. O. BOX 1250 ~ FORT COLLINS, COLORADO 80522

ON THE FOLLOWING DESCRIBED PROPERTY:

L.C.
[]

SCHEDULE #
489921

PARCEL #
04360-00-046

TAX DIST.
2419

CASH ☐
CHECK ☒

W 1/2 OF NW 1/4 & W 1/2 OF W 1/2 OF

*** DESCRIPTION TRUNCATED -

COMPLETE TEXT IS ON FILE

MARTIN MARIETTA CORP

PO BOX 467

LYONS CO

80540

PAID BY:

WITH THIS OFFICE ***

LANDS - LOTS	VALUATION IMPROVEMENTS	TOTAL VALUATION	LEVY	TAX - FIRST HALF	TAX - SECOND HALF	TOTAL TAX
24,000		24,000	75.558	906.70	906.70	1,813.40
		TAXES DUE		906.70	906.70	1,813.40

EXHIBIT "P"

OWNER OF RECORD OF AFFECTED LAND

OWNER OF SUBSTANCE TO BE MINED

Martin Marietta Corporation
6801 Rockledge Drive
Bethesda, Maryland 20034